

NEW SERIES

No. 58

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY

REPORT OF ACTING COMMITTEE

REPORT OF COMMISSION TO INVESTIGATE
PRISON SYSTEMS

MILITARY DISCIPLINE AND PUNISHMENTS, ETC.

1919

ISSUED ANNUALLY BY
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FORREST BUILDING, 119 SOUTH FOURTH STREET
PHILADELPHIA, PA.

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PRESS OF ALLEN, LANE & SCOTT, PHILADELPHIA.

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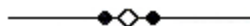
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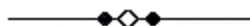
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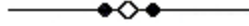
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OFFICIAL VISITORS.

No person who is not an official visitor of the prison, or who has not a written permission, according to such rules as the Inspector may adopt as aforesaid, shall be allowed to visit the same; the official visitors are: the Governor, the Speaker and members of the Senate; the Speaker and members of the House of Representatives; the Secretary of the Commonwealth; the Judges of the Supreme Court; the Attorney-General and his Deputies; the President and Associate Judges of all the Courts in the State; the Mayor and Records of the cities of Philadelphia, Lancaster and Pittsburgh; Commissioners and Sheriffs of the several Counties; and the "ACTING COMMITTEE OF THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS." (Note: Now named "THE PENNSYLVANIA PRISON SOCIETY.")—*Section 7, Act of April 23, 1829.*

The above was supplemented by the following Act, approved March 20, 1903:

AN ACT

To make active or visiting committees of Societies incorporated for the purpose of visiting and instructing prisoners official visitors of penal and reformatory institutions.

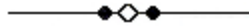
SECTION 1. Be it enacted, etc., That the active or visiting committee of any society heretofore incorporated and now existing in the Commonwealth for the purpose of visiting and instructing prisoners, or persons confined in any penal or reformatory institution, and alleviating their miseries, shall be and are hereby made official visitors of any jail, penitentiary, or other penal or reformatory institution in this Commonwealth, maintained at the public expense, with the same powers, privileges and functions as are vested in the official visitors of prisons and penitentiaries as now prescribed by law: *Provided*, That no active or visiting committee of any such society shall be entitled to visit such jails or penal institutions, under this act unless notice of the names of the members of such committee, and the terms of their appointment, is given by such society in writing, under its corporate seal, to the warden, superintendent or other officer in charge of such jail or other officer in charge of any such jail or other penal institution.

APPROVED—The 20th day of March, A. D. 1903.

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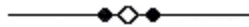
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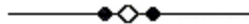
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PHILADELPHIA, PA.

FORM OF BEQUEST OF PERSONAL PROPERTY.

I give and bequeath to "THE PENNSYLVANIA PRISON SOCIETY" the sum
of.....Dollars.

FORM OF DEVISE OF REAL ESTATE.

I give and bequeath to "THE PENNSYLVANIA PRISON SOCIETY" all that certain
piece and parcel of land. (Here enter the description.)

OFFICERS FOR THE SOCIETY FOR 1919

PRESIDENT

EDWARD M. WISTAR, Provident Building, Philadelphia.

VICE-PRESIDENT

NORRIS J. SCOTT, Moylan, Pa.

SECRETARY

ALBERT H. VOTAW, 119 S. Fourth Street, Philadelphia.

ASSISTANT SECRETARY

CHARLES P. HASTINGS, 119 S. Fourth Street, Philadelphia.

TREASURER

JOHN WAY, 409 Chestnut Street, Philadelphia.

COUNSELORS

FREDERICK L. CLARK, West End Trust Building, Philadelphia.

WILLIAM DRAPER LEWIS, Law Department, University of
Pennsylvania.

GENERAL AGENT

FREDERICK J. POOLEY, 119 S. Fourth Street, Philadelphia.

ACTING COMMITTEE

FOR ONE YEAR

Harrison Walton	John A. Duncan	Fred Swarts Brink
Charles P. Hastings	Mrs. Mary S. Grigg	Dr. B. Frank Kehler
Rev. F. H. Senft	William Morris	Dr. J. J. Mullowney
Isaac P. Miller	Mrs. Emma L. Thompson	Robert B. Haines, Jr.
Charles McDole	Rev. Thomas Latimer	H. Wellington Wood

FOR TWO YEARS

Harry Kennedy	George S. Wetherell	Dr. Charles Williams
Henry C. Cassel	Frank H. Longshore	Charles C. Simmington
Mrs. Layyah Barakat	C. Wilfred Conard	Mrs. Eliza M. Cope
Rev. J. F. Ohl	Rev. M. Reed Minnich	Watson W. Dewees
Mary S. Wetherell	Miss Emily Whelen	George A. Coburn

FOR THREE YEARS

Frederick J. Pooley	Miss Annie McFedries	Joseph P. Byers
William Koelle	Dr. John Frazer	Franklin S. Edmonds
Deborah C. Leeds	Dr. J. Treichler Butz	Leon J. Obermayer

Mrs. Clara Hodges
Allen

Miss Rebecca P.
Latimer

George W. Wilkins

Mrs. Mary Ella
deLong

Miss M. N. Cochran,
Jr.

Miss Florence B. Kane

ACTING COMMITTEE FOR THE STATE-AT-LARGE

FOR ONE YEAR

BUCKS COUNTY

Mrs. Anna K.

**CHESTER
COUNTY**

Mrs. B. K. C.
Marshall

YORK COUNTY

Miss Rhoda M.
Starr

FOR TWO YEARS

**ALLEGHENY
COUNTY**

Garges Paul T. Beiswenger

**MONTGOMERY
COUNTY**

Capt. Nicholas Baggs

LUZERNE COUNTY

Mrs. Anabel Wallace

FOR THREE YEARS

**ALLEGHENY
COUNTY**

Rev. F. W. Beiswenger

CENTRE COUNTY

Hon. J. Linn Harris

STANDING COMMITTEES FOR 1919

Visiting Committee—Eastern Penitentiary:

MEN

Rev. J. F. Ohl	Charles P. Hastings	Edward M. Wistar
Rev. F. H. Senft	Charles McDole	Fred Swarts Brink
Harry Kennedy	John A. Duncan	George W. Wilkins
William Koelle	Albert H. Votaw	Dr. B. F. Kehler
George S. Wetherell	Rev. Thomas Latimer	Leon J. Obermayer
Henry C. Cassel	Isaac P. Miller	Chas. C. Simmington
Harrison Walton	Rev. M. Reed Minnich	Geo. A. Coburn
Frank H. Longshore	Dr. Charles Williams	H. Wellington Wood
	William Morris	

WOMEN

Deborah C. Leeds	Miss R. P. Latimer	Mrs. Mary Ella deLong
Mary S. Wetherell	Miss Emily Whelen	Mrs. Layyah Barakat
	Mrs. Mary S. Grigg	

Visiting Committee—Philadelphia County Prison—Moyamensing:

John A. Duncan	Norris J. Scott	Deborah C. Leeds
Rev. J. F. Ohl	H. Wellington Wood	Mrs. Clara Hodges Allen
Frederick J. Pooley	Albert H. Votaw	Miss R. P. Latimer

Visiting Committee—Philadelphia County Prison— Holmesburg:

Frederick J. Pooley William Koelle John A. Duncan

Visiting Committee—House of Correction:

William Koelle
Fred Swarts Brink

Robert B. Haines, Jr.
Mrs. Layyah Barakat

Committee on Discharged Prisoners:

Dr. Charles Williams
Miss Florence B. Kane

George W. Wilkins
Charles P. Hastings

Committee on Legislation:

Rev. J. F. Ohl
C. Wilfred Conard

Mrs. E. M. Cope

Hon. J. Linn Harris
Joseph P. Byers

Committee on Membership:

Isaac P. Miller
John A. Duncan

George W. Wilkins

Miss M. N. Cochran, Jr.
George S. Wetherell

Committee on Police Matrons:

Mrs. Mary S. Grigg Miss Emily Whelen Mrs. Mary Ella deLong

Editorial Committee:

Rev. J. F. Ohl
Rev. F. H. Senft

Miss Florence B. Kane

Joseph P. Byers
Albert H. Votaw

Finance Committee:

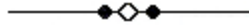
George S. Wetherell
Robert B. Haines, Jr.

John A. Duncan
Fred Swarts Brink

Auditors:

John A. Duncan Isaac P. Miller Watson W. Dewees

THE JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY



ONE HUNDRED AND THIRTY-SECOND ANNUAL MEETING OF THE PENNSYLVANIA PRISON SOCIETY.

The 132d Annual Meeting of THE PENNSYLVANIA PRISON SOCIETY was held by appointment in Assembly Hall, Church Building, northwest corner Fifteenth and Race Streets, Philadelphia, on the evening of January 14, 1919, President Edward M. Wistar in the Chair.

Twenty-five members were present.

The Minutes of the 131st Meeting were read and approved.

The Report of the Acting Committee for the year 1918 was read by the Secretary. It was approved and directed to be printed. (See pages 7-14.)

The Treasurer, John Way, presented a detailed statement of the receipts and payments for the fiscal year ending December 31, 1918, accompanied by a schedule of the securities held for the Society by the Fiscal Agent, The Provident Life and Trust Company. The statement had been audited and the securities had been examined by the auditors. (See page 15.)

On behalf of the Committee on Nominations, the Secretary presented a list of nominations for the Officers of the Society and for members of the Acting Committee to succeed those whose terms expire on February 1. Watson W. Dewees and George S. Wetherell were appointed Tellers. The election being duly held the persons nominated were elected to the offices designated in the report of the Committee. (See page 3.)

A communication was read, sent by Leonard G. Yoder, Esq., Solicitor for the Berks County Prison, calling attention to the fact that the Act of the Assembly, approved 1917, provided that prisoners in the county prisons could be employed at agricultural labor only during the continuance of the war which is now interrupted by the armistice. The net profit of the labor of prisoners thus employed in Berks County in 1918 was \$800, and the Solicitor recommends that this Act should apply permanently and requests that this Society should exert an influence on the present Assembly for the purpose of encouraging the continuation of this beneficial measure for the employment of prisoners. By motion, the communication was referred to the Legislative Committee of the Acting Committee.

Dr. George W. Kirchwey of New York delivered the Annual Address. He is the Counsel for the Commission under appointment to investigate prisons and to recommend such revision of our present penal system as may seem advisable. While the report of the Commission was not yet entirely prepared, he intimated that some scheme of Central Administration would be proposed, not so much to take the management away from the present Boards of Inspectors as to exercise advisory and supervisory powers and to correlate our various correctional institutions. The conditions now obtaining in regard to the employment of prisoners were deplorable in this Keystone State, and it was the aim of the Commission to provide some form of productive labor for all able-bodied prisoners. They were prepared to recommend an extension of agricultural operations and favored the early removal of the Eastern Penitentiary to a farm in the eastern portion of the State. He deprecated every form of brutality in the treatment of delinquents and evidently thought the old repressive spirit and measures could still be found to have lodgment in some of our prisons. He was sure that a large number of our prisoners, possibly a majority, were mentally deficient and ought to have special treatment adapted to their needs, which, under present circumstances of incarceration, was impossible. If we wish to restore the men whom we confine in our prisons, we must do more than simply restrain them within certain limits; we must treat them as erring brothers and sisters, not as dumb driven cattle.

To nominate to our next Annual Meeting the officers of the Society and members of the Acting Committee whose terms expire next year, the

President appointed William Biddle, Robert Dunning Dripps, John A. Duncan, William C. Warren and Miss Emily Whelen.

ALBERT H. VOTAW,
Secretary.

REPORT OF ACTING COMMITTEE FOR THE YEAR 1918.

At a meeting which was held May 8, 1787, in Philadelphia, at which the “Philadelphia Society for Alleviating the Miseries of Prisons” was organized, provision was made for the appointment of an Acting Committee which should discharge the executive functions of the Society. It was composed of nine persons, the President, the two Vice-Presidents, and six additional members. The first Acting Committee was composed of

Bishop William White, President,
Dr. Henry Helmuth, Vice-President,
Richard Wells, Vice-President.

Additional members:

Tench Coxe, John Kaighn,
Dr. George Duffield, Benjamin Wynkoop,
William Rogers, George Krebs.

From time to time, on account of additional duties, responsibilities and opportunities for service, this Committee has been enlarged until at the present time it is limited to sixty persons, and at the present time is composed of fifty-six members.

In 1886 the name of the Society was changed to “The Pennsylvania Prison Society”—a name indicating no change of purpose, but rather a wider scope of operations.

In the year 1829, the Acting Committee, by Act of Assembly, were appointed Official Visitors of all prisons in the Commonwealth. Our

Society was the only one having such duties until the year 1903, when, by another Act of the Assembly, the privilege was granted to the Acting Committee of the Catholic Society for the Visitation of Prisoners.

OFFICIAL VISITATION.

While many members of our Visiting Committees have been zealous in their endeavor to open the door of hope to the prisoners, and to stimulate them to higher ideals of life, the general conditions obtaining in the prisons have also claimed attention. It is a prescribed function of the Visiting Committee of any prison, whether State or County, to note the “condition of the buildings ... the discipline and management,” and to make report of their observations. Great discretion and a full understanding of the situation are essential in publishing the results of such comments and observations. In the early history of our organization, there were so many abuses prevalent in the management of prisons that by far the larger part of the activities of the Acting Committee consisted in the effort to remedy the evils of management. These efforts were eminently successful in those days of emergence from medieval methods; and while we all rejoice in the very great amelioration of conditions, it must be confessed that penal improvement has lagged behind all other agencies for betterment. If we compare our educational system, hospitals, transportation methods, agricultural development—any field of human endeavor—with our correctional institutions, we are overwhelmed by the extreme lack of corresponding progress.

PERSONAL VISITATION.

The reports of the Visiting Committees for the year 1918 indicate that there is no loss of interest or effort in seeking to restore men and women to their better selves. In consequence of the quarantine caused by the epidemic of influenza, which resulted in keeping visitors away from four to six weeks, the statistics do not bulk as large as usual.

Number of reported visits to the Eastern Penitentiary	337
Number of reported interviews with the inmates	6,435
Number of reported interviews with the inmates of the Philadelphia County Prison	3,631
Number of prisoners interviewed at Central Station by Agent	15,933
Number of discharged prisoners receiving direct aid	590

On practically every Sabbath one or more of our members take part in the religious services in the prisons.

We are convinced that many of those with whom we meet from time to time are victims of circumstances, and also that many of them are defective in mentality and in self control. At some time, we trust the General Assembly will take up seriously the subject of the degenerates who need treatment in accordance with the most approved psychiatric methods. Some of them need institutional care for a much longer time than is indicated by the Court sentence. Here they should be restrained until they are deemed ready to become useful to the community.

EMPLOYMENT OF PRISONERS.

In the great Commonwealth of Pennsylvania, the most flagrant evil of the prisons is the lack of wholesome employments for the inmates. Even some of our laws designed to help conditions have aggravated the evil. For instance, the law of 1913, which, with the best intentions, repealed other laws for employment in the State Penal Institutions, in order that the inmates might all be employed in making articles for State use, did not create a sure market for the articles thus manufactured, and therefore the number of prisoners profitably employed in the penitentiaries is not so large as under a former law when 35 per cent. of them could be kept at work in the manufacture of articles or products to be sold in the open market. A simple remedy for this deplorable state of affairs may be found in granting the privilege of selling the surplus stock in the market at the prevailing price. Organized labor found undesirable competition with the products of free labor only when the prisoners were employed on the vicious contract

system. Under the present methods, the prisoners are to receive a fair wage and the products are to be sold at the market price. Perhaps we could make a beginning by listing certain industries in which the convicts may be employed. Place no restrictions on agricultural products, including canned goods, on the work of stone crushing and in general the manufacture of road-making material, and also allow two or three indoor industries, such as the manufacture of carpets and knit goods. Thus the problem may be solved. When we consider the very small number of persons so employed in comparison with the hordes of outside workers, it appears very evident that the amount of real competition would reduce to the vanishing point. No industry would be injured, the tax-payers would be relieved from a large part of the expense, the prisoners would earn their own maintenance, and thus the demoralizing effects of idleness would be averted.

DISCHARGED PRISONERS.

It has sometimes been stated that for some visitors, the prisoner loses his charm when released from confinement. He may be decidedly interesting behind the bars, or perhaps he may be simply an object of curiosity, or a psychological specimen to be studied, like some abnormal freak of nature. Within the wall the visitor may show warmth, interest, cordiality, sympathy, a certain degree of familiarity, but on the outside the atmosphere is below zero. This is a species of charlatanism for which we have no sympathy. It is an exceedingly important part of our mission to set the discharged man on his feet, and to establish his goings. If ever any man needed sympathy and material aid, it is when the man released from confinement again becomes a member of the community. Not all the men and women who are released seem to require special help, but those who are in need are very greatly dependent upon human kindness till they have regained some sense of confidence and have again become self-supporting. If aid and good cheer are not forthcoming at this crucial time of testing, there is imminent danger of a relapse into former bad habits. We believe that all of our visitors realize the importance of maintaining our interest and kindly feeling for the prisoner at the time of his release.

SECURING EMPLOYMENT.

During the last two years there has been no difficulty in finding work for any able-bodied man. There are some disappointments, but we are learning not to become discouraged. Possibly we may allow ourselves to dwell unduly on the failures, when we should recall the many instances of reclamation. The saying "Once a crook, always a crook" has no place either in our experience or in our philosophy. If this saying represents a truth, we would become pessimistic regarding the human race. Show us the man or woman who has never erred. Please note some examples:—

The other day we met "A" on Market Street. Accompanied by his little son, he was speeding away in his "flivver." He stopped to give us a greeting, and indicated that happiness and prosperity were his portion.

"B" is a spick and span policeman in a neighboring city. Though you may say "Set a thief to catch a thief," this particular guardian of the public peace is discharging his duty to the community.

"C" seemed particularly pleased to meet us the other day uptown. He had joined the church, and had attained to the dignity of usher.

"D," who was once an accomplished burglar, having served at least two terms in prison, has built up a manufacturing industry, and is quite prosperous.

"E" is foreman in the jewelry department of a large department store "somewhere in America."

"F," a one-armed piece of ebon jollity, is one of the handiest men employed on a certain prosperous truck farm.

"G," who began cooking for Blank Firm at \$10 weekly wages, now reports with a grin that he is getting \$65 a month with board and lodging.

"H" is one of the most popular clerks in the office of a mammoth establishment. That he once fell from grace is known, but it is no longer reckoned against him.

“I” one year ago began as a solicitor and now his business has so enlarged that he has taken a suite of rooms for his office.

We could easily exhaust the alphabet with such cases. There are failures, but we try to discount our disappointments when we take account of those who are “making good.” The Parole Officers have informed us that seventy-five per cent. are becoming satisfactory citizens. By far the larger part of those whom we willingly assist, in a short time are beyond our ken. They take with them our hopes and our fears—our fears, that they may again yield to the manifold temptations on every hand; our hopes, that they have learned their lesson, and with courage and by the help of divine grace are performing their duty to the community.

A REVOLVING RELIEF FUND.

A few of those to whom we render assistance return a part, or all, of the funds which we have advanced to them. We do not press them for payment. Those who are invalids or who have families to support are not expected to repay us. From many years of experience, we have learned that it is not wise indiscriminately to make grants of cash in hand. Old chums are waiting just around the corner for a treat. Temptations of all sorts are manifold. We guarantee bills for board and lodging, purchase tools and clothing, furnish transportation, and provide outfits for those who are sent to the State Sanatoriums. But there are some who should feel an obligation to return the value of the assistance rendered. Thus we hope to create a sort of revolving fund which may be used for cases of need, and when returned is ready for the next man. Many of these released men have some natural pride or self respect, and do not wish to be considered mendicants.

THE AMERICAN PRISON ASSOCIATION.

On account of the epidemic of influenza so prevalent in the autumn, the meeting of the American Prison Association was called off. At a meeting of the Executive Committee held recently it was concluded to postpone till next year the sessions of this body. New York had been selected as the

place, and it has been decided to meet in the same city, October 20-24, 1919.

THE AGENT'S WORK AT THE CENTRAL POLICE STATION.

One of the most important features of our relief work is under the management of our Agent, Mr. Fred J. Pooley, at the Central Station, City Hall. From the forty-two Police Stations throughout the city, there arrive almost hourly at this Central Station van loads of human freight which in some way or other must be quickly disposed of by the Committing Magistrate. Most of these are petty offenders, but also there are numerous cases of arrest on suspicion or for vagrancy, and such as these need special care in order to prevent injustice, and to be saved from criminal associations. Agent Pooley endeavors to have a brief interview with these derelicts or victims of misfortune before they are taken before the Magistrate. In ten months of last year he thus interviewed 15,933 arrested persons, and on their behalf wrote to their friends 1,937 letters. His experience for many years has taught him to distinguish the ring of the true from the sound of the false, so that when the cases come up before the Court, he is ready to interpose a word on behalf of the accused person. Often the unfortunate man or woman, boy or girl, is placed in the care of the agent, who sends them to their homes or friends, or places them in some detention home until he may verify their story or hear from their parents or relatives. No day passes with a blank record in this work of rescue.

In the Agent's report, an abstract of which is printed in the Annual Journal of which this report forms a part, a number of instances are narrated, illustrating the importance of this service.

During the time of the closing of the saloons on account of the epidemic of influenza, the number of arrests for drunkenness and disorderly conduct greatly decreased, thus clearly demonstrating that a prohibitory law would have a decided tendency very greatly to diminish crime and disorder in this city.

LEGISLATION.

We have delayed the printing of our annual report in order to include in the JOURNAL the Report of the Commission to Investigate Prison Systems, of which the Secretary of the Society is a member. The Legislative Committee of the Society has endorsed the findings of the Commission and has urgently requested the General Assembly to take favorable action on the bills presented by the Commission. A synopsis of these bills presents the following desirable features.

1. The enlargement of the functions of the State Board of Public Charities so as to include the appointment from their number of a Committee on Delinquency with supervisory power over all prisons of the Commonwealth and with authority to condemn unsanitary conditions and provide for betterment, and also to have especial direction over the prison industries. Medical and psychiatric examination of convicts is provided with power to transfer defective criminals to the institution most suitable for their care and restoration.
2. The establishment of State Industrial Farms to which those sentenced to the county jails may be sent.
3. An Amendment to the law of 1911 which deals with the imposition of sentences by the Courts to the extent that convicted prisoners may be eligible for parole when one-third of the maximum sentence has expired.
4. Abolition of the fee system in county jails, a practice universally condemned by all who have studied the problem.
5. The removal of the Eastern Penitentiary to a farm in the eastern part of the State. This suggestion is in line with the recommendation of the Commission of 1915 of which the present Warden was a member. At that time the purchase of a farm for the use of the institution was proposed.
6. The provision that goods and articles made by the labor of prisoners shall be used whenever practicable by public institutions of the Commonwealth, thus insuring a market for such products.

The full report of the Commission is found in the present issue of the JOURNAL, pages 19-46.

THE ROLL OF MEMBERS.

During the last year we have to a considerable extent enlarged the membership of our Society. We presented the matter to a number of our citizens, many of whom had been contributors to our work for some time, who very cordially accepted membership. Seventy-five persons have been added to our membership during the year 1918, and we are deeply gratified to place on our roll the names of so many estimable citizens. The number of members at the present time, including life members, is 252.

MORTUARY NOTICES.

During the last year four of the members of the Acting Committee have been called away by death.

In January our dear friend, Mrs. Elizabeth M. Gormly, who has faithfully visited for many years the prisoners in Pittsburgh, died at an advanced age. She had been a member since 1903. She was also connected with the Women's Christian Temperance Union, being the State Superintendent of Evangelistic Work among Prisoners.

In August, Mrs. Annie Fassitt, of Philadelphia, also of an advanced age, passed from works to rewards. She had been a member from 1896, and had given special assistance to hundreds of prisoners. She was one of the founders of the "Door of Blessing," and for many years was prominent in the support and management of this effort for the restoration of erring sisters. She was a real "Angel of Mercy."

John Smallzell, a member since 1905, also passed away in the month of August. His visits to Eastern Penitentiary will long be remembered. Wherever he went, he took a message of good cheer. He was most sincere

and devout, and carried with him everywhere the influence of a devoted Christian life.

In April, 1919, our esteemed Vice-President Joseph C. Noblit, in the eighty-sixth year of his life, was called to his everlasting home. He was elected a member of the Society in 1899 and was made a member of the Acting Committee in 1900. In 1916 he was chosen as one of the Vice-Presidents, and on occasion presided at the meetings of the Acting Committee with dignity and a high sense of responsibility. He was a diligent attender of the meetings and his judgment on the many matters coming before the Committee was sound and discreet. He was a faithful visitor to the inmates of our prisons, earnest in the endeavor to bring to them a true gospel message and to induce them to choose the better way of living. He knew the deep principles of experimental religion, and was solicitous that all with whom he came in contact should know for themselves the consolations of a devoted Christian life. "He giveth his beloved sleep."

On behalf of the Acting Committee,

EDWARD M. WISTAR,
President.

ALBERT H. VOTAW,
Secretary.

FINANCIAL STATEMENT.

RECEIPTS FOR THE YEAR 1918.

To Balance January 1, 1918	\$1,716 94
“ Contributions	3,439 00
“ Dues from Annual Members	410 00
“ Life Membership (Edw. M. Wistar)	50 00
“ Income from Investments	2,152 60
“ Income from I. V. Williamson Charities	720 00
“ Income from Anna Blanchard Fund	220 50
“ Income from Joshua L. Baily Fund	157 62
“ Income from Henry A. Rogers Fund	25 20

“ Income from Isaac Barton (Tool Fund)	80 33
“ Interest on deposits	42 05
“ Sale of Literature	90
“ Returned by Discharged Prisoners	40 25
“ Refund Account Wardens' Conference	129 45
Total Receipts	\$9,184 84

PAYMENTS.

For Aid and Relief Discharged Prisoners	\$1,408 34
“ Journal and other Publications	650 80
“ Dues, various affiliated Associations	11 00
“ Library, Periodicals	27 35
“ Postage, Printing, Stationery	383 75
“ Office Expenses, Telephone, Incidentals	275 89
“ Traveling Expenses, Secretary and Agent	98 60
“ Rent of Office	480 00
“ Salaries of Officers	3,710 00
“ Life Membership Fee Transferred to Fiscal Agent	50 00
“ Balance, December 31, 1918	2,089 11
Total Payments including balance	\$9,184 84

REPORT ON FUNDS HELD FOR HOME OF INDUSTRY.

Receipts on Account of Income	\$361 28
Payments to Home of Industry	361 28

Respectfully,
JOHN WAY, *Treasurer.*

We the undersigned members of the Audit Committee, have examined the foregoing account of John Way, Treasurer, compared the payments with the vouchers, and believe the same to be correct.

We have also examined securities in the hands of our agents, The Provident Life and Trust Company of Philadelphia, and find them to agree with the list thereto attached.

Philadelphia January 1, 1919. JOHN A. DUNCAN,
ISAAC P. MILLER,
Auditing Committee.

REPORT OF GENERAL AGENT FREDERICK J. POOLEY.

During the year 1918 the Agent made daily visits to the cell-room at the Central Station at City Hall. Twenty thousand and thirty-nine men and women prisoners were detained there for preliminary trial, 15,933 of whom the Agent visited while at the Central Station and the remainder after they arrived at Moyamensing Prison.

Number visited at County Prisons	2,829
Number of notices and letters written on their behalf	1,888
Number discharged prisoners receiving financial aid	345

The opportunities for helpful service are very numerous. In a large number of cases of suspicion or of a trivial character, the Agent has been instrumental in securing the discharge of the prisoners, or in placing them under the care of the Probation Officer, thus saving their family from disgrace and the County from expense.

It might be of interest to mention a few cases of interest.

No. 1. A young man from the west, arrested as a suspicious character, had been from home nine years, and was held for a hearing. The Agent got in touch with his relatives and he was discharged and sent home.

No. 2. A young man from Pittsburgh, Pa., money all gone, while pawning his watch was arrested; the pawnbroker thought he had stolen it, and when your Agent received word from his mother that it was his own watch, he was discharged and sent home.

No. 3. Two young men from St. Louis, with no money, were held as suspicious characters in order to give the Agent a chance to get in touch with relatives. One mother came on, and the other sent ticket, and they both went home.

No. 4. A young man who had gone from town to town, ashamed to write home, until he landed in our City Hall cell. A few words from the Agent, brought tears to his eyes and he allowed a letter to be written. The magistrate discharged him and he is now at home, and he writes: "I am so glad you found me when you did, for your letter found my mother and brought her to my rescue, and now *I am free* and expect to keep in the right path the remainder of my life."

With the close of the year 1918, your Agent completed 20 years of service at the Philadelphia County Prison and eight years of service at the Central Police Station, City Hall, and in all these years your Agent has not lost sight of the fact that it is the kind word and a kindly grasp of the hand, at the proper moment, that may be the means of turning an unfortunate from the wrong to the right path.

Very truly,
FREDERICK J. POOLEY,
General Agent.

1/15/19.

PAROLE STATISTICS—EASTERN PENITENTIARY.

The whole number of prisoners released on parole, including some who have been re-paroled, from September, 1910, to January 1, 1919	2,773
Number thus released in 1918	510
Whole number returned to the Penitentiary since September, 1910	515

Some of those paroled have died, some have been pardoned and some have received final discharge.

Number who should now be reporting	930
Of these, the number actually reporting	728
Number known to be in jail elsewhere	37
Number whose present address is unknown	165 930

Less than six per cent. of the entire number have vanished. It must not be considered that all of these have committed crime. Doubtless many of them have been in the trenches. They have broken connection with the parole officials in order to serve Uncle Sam, who has stated that he will not accept those who have been guilty of felony. From outside sources, we have known that a large number of former convicts have thus endeavored to expiate their former offenses. Much praise has been given to ex-convicts in Canada and Great Britain from which countries many were released in order to join the army or navy. In fact very few of these absconders are supposed to have again committed crime. Nearly every penal institution of the country receives notice of these decampers accompanied by their photographs, so they are easily identified. The few who again committed some crime have thus been detected and either returned whence they came or held with detainers. Probably nearly all of them desire to get entirely away from any restraint or semblance of authority. They make a grievous mistake for they are liable at any time to be apprehended and to be brought back in disgrace. They live the life of hunted animals. Never for one hour can they feel secure. We believe that a penalty should be levied upon those who abuse the privilege of parole. They have violated their word of honor, and should serve additional time.

There are some persons who will argue against the granting of parole because some eight and one-half per cent. of these obtaining this privilege have again been guilty of violations of law and order. Nearly all these violations are of the nature of misdemeanors. Comparatively few have been guilty of felonies. The problem involves a deep study of human psychology. In order to determine who shall be released, there are many elements to be

considered. Mistakes are made both within and outside the prison walls. Those on the inside often give the applicant the benefit of their doubts when the logic of the case seems to urge further detention. When the man is on the outside he is often disappointed in the attitude of the community of which he really desires to become a law-abiding citizen. The members of the community assume a serious responsibility when they put stumbling-blocks in the way of the man who is endeavoring to make good. "Woe to that man by whom the offense cometh."

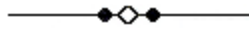
But the conclusion is irresistible that an argument against release on parole, based on the fact that about eight per cent. have again become lawbreakers, is a stronger argument against release at expiration of sentence.

For a much larger percentage than eight per cent. of those who are released because their terms have expired and therefore can not longer be detained, become recidivists. Often one-half of the prisoners at a penal institution have served previously, and yet a comparatively small percentage are parole violators. In other words, the same argument which is used against release on parole will apply more strongly to any release whatever. Again, it must be remembered that the paroled man or woman is under watchful care, while the person absolutely released is subject to no restraint.

Out of every 100 persons reported January 1, 1919, as being on parole, 74 were making good. Of the remaining 26, barely two have committed felonies. This record is better than Boards in some other States have reported. Our Parole Officials are giving deep study to this subject with a view to increasing the percentage of successful effort.

A. H. V.

COMMONWEALTH OF PENNSYLVANIA.



REPORT OF COMMISSION TO INVESTIGATE PENAL SYSTEMS.

To the General Assembly:

Your Commission duly appointed pursuant to Act of the Legislature, No. 409, 1917, "to investigate the prison systems and the organization and management of correctional institutions within this Commonwealth and elsewhere; to recommend such revision of the existing prison system within this Commonwealth, and the laws pertaining to the establishment, maintenance and regulation of State and County correctional institutions within this Commonwealth as it shall deem wise, and to report the same to the General Assembly at the session of 1919," respectfully submits the following report of its proceedings, together with its conclusions and recommendations and proposed bills for carrying the same into effect.

The Commission was constituted as follows:

Fletcher W. Stites, Narberth, Chairman,
Alfred E. Jones, Uniontown,
Mrs. Martha P. Falconer, Darling P. O.,
Louis N. Robinson, Swarthmore,
Albert H. Votaw, Philadelphia.

On November 1, 1917, the members of the Commission met in the City of Philadelphia, for the purpose of organization and assigned the work of investigation which had been committed to it to the several members thereof. On July 1, 1918, the Commission retained Dr. George W.

Kirchwey, of New York City, as its counsel to direct the subsequent course of the investigation and to aid the Commission with his counsel and advice.

I.

SCOPE OF INVESTIGATION.

The Commission was fortunate in having in its personnel as thus constituted four members, including its counsel, who had through long experience and previous investigations acquired considerable information as to penal institutions and their management in this and other States. The investigation covered:—

(1) A careful study and analysis of the laws governing penal conditions and institutions in this Commonwealth;

(2) An examination of the six correctional institutions directly controlled by the State, namely:

The Eastern Penitentiary, at Philadelphia;
The Western Penitentiary, at Pittsburgh;
The New Central Penitentiary, at Bellefonte;
The State Industrial Reformatory, at Huntingdon;
The Pennsylvania Training School, at Morganza;
The State Industrial Home for Women, at Muncy;

(3) A similar examination of the Glen Mills Schools—the Girls' Department, Sleighton Farms, at Darlington, and the Boys' Department at Glen Mills;

(4) A similar examination of the Philadelphia House of Correction and of the County Convict Prison at Holmesburg, Moyamensing Prison in Philadelphia, the Allegheny County Workhouse at Hoboken and many other county institutions;

(5) A study of the constitution, organization and functions of the State Board of Public Charities, and specifically of those of its Committee on Lunacy;

(6) A study of the powers and activities of the Prison Labor Commission instituted under the Act of June 1, 1918;

(7) A careful survey of the entire history of the penal system of the Commonwealth of Pennsylvania from the colonial period down to the present time, based on the historical research of Professor Harry E. Barnes of Clark University, Massachusetts;

(8) An investigation of significant correctional institutions in several other States, notably in New York, New Jersey and Ohio.

To supplement and enlarge the range of these inquiries and studies, the Commission was permitted to avail itself of the results of previous investigations conducted by two of its members; on the Employment and Compensation of Prisoners in Pennsylvania, by Professor Louis N. Robinson, as Secretary of the Penal Commission of 1913-1915, and on the county jails and workhouses, made periodically from 1914 to 1918 by Albert H. Votaw, as Secretary of the Pennsylvania Prison Society.

The Commission desires to express its sense of deep obligation to the officials and inspectors of prisons in this Commonwealth for the courtesy and hospitality extended to its members in the course of their investigations. It also acknowledges its indebtedness to the Secretary and members of the Board of Public Charities and to the Secretary of the Public Charities Association for their helpful co-operation.

The Commission has heretofore submitted to the Governor two preliminary reports, one a Special Emergency Report on Prison Labor, bearing date September 1, 1918, and a special report on the State Industrial Home for Women, under date of September 15, 1918, both of which are hereto appended.

While both these reports were called out by war emergencies, the former by the dearth of labor power to man the war industries of the Commonwealth, the latter by the need of providing a place for the detention and treatment of the large number of dissolute women convicted of offenses against Federal and State laws enacted for the protection of the soldiers in the training camps—the Commission believes that they are still pertinent and that the

recommendations which they contain should form a part of any constructive scheme for the improvement of the penal system of the Commonwealth.

II.

DEVELOPMENT OF PENAL SYSTEM OF PENNSYLVANIA.

The most inspiring and significant chapter in the history of penology is not the achievement of John Howard in redeeming the common gaols of England from the degradation into which they had fallen, nor of Lord Romilly in his lifelong struggle against the barbarities of the English penal laws, but the leadership which for more than a century the Commonwealth of Pennsylvania gave to the world both in prison reform and in the amelioration of the penal code. The two former were the revolt of sensitive and humane natures against hoary abuses; but the latter was all this and something more. It was a bold and imaginative reconstruction of the whole basis of penal discipline. As far back as the last quarter of the seventeenth century the Quaker colonists of Pennsylvania introduced for the first time the practice of employing imprisonment at hard labor as the ordinary method of punishing anti-social action. After the reversion of the American colonies for fifty years to the barbarous criminal jurisprudence of the mother country, Pennsylvania was the first State, the first community in the world, to break with this system and to substitute imprisonment for the various brutal and degrading types of corporal punishment. The Walnut Street Jail in Philadelphia, in 1790, was the earliest institution in America in which these more enlightened principles were put into practice. From this second beginning, for a period of forty years, Pennsylvania was elaborating and perfecting the first of the two great systems of penal administration which were destined to dominate the penology of the civilized world during the nineteenth century—the separate confinement of malefactors. Visited, admired and imitated by large numbers of eminent and enthusiastic European penologists, the Eastern Penitentiary at Cherry Hill was the pivotal point linking American and European penology for more than a generation after 1830.

Then followed that long period of inertia, of lassitude, of marking time, which is so apt to succeed to a period of ardent reforming energy and which

to this very day has maintained its spell over the State and the Nation.

Not that there have not in the last half century been notable improvements in the theory and practice of penal administration, some of them bold enough to bring America from time to time into the forefront of interest and example to the penologists of the Old World, but in most of these the Commonwealth of Pennsylvania has been content to play a secondary role. Throughout this era of slackened energy she has not cared or dared to initiate, to lead, to “carry on,” but has followed belatedly and afar off the progress of other States. Examples of this are the Auburn congregate system, which divided with the Pennsylvania system of solitary confinement the interest of European as well as of American penologists, and which was adopted in the Western Penitentiary in 1869, a full generation after its establishment in New York State, and which has only recently conquered the parent institution on Cherry Hill; the justly famous Elmira experiment of progressive classification and industrial training of inmates embodied in the Huntingdon Reformatory in 1889, and the long-promised reformatory for women at Muncy, which, six years after its creation by legislative action, has not yet been rendered available for the purpose for which it was designed.

The first step in the development of an intelligent conception of delinquency and its treatment came not in an accurate conception of the nature of crime and its causes, but in a clearer and more correct notion of the function of punishment. By 1790 the element of deterrence in punishment was recognized and emphasized. The element of reformation was a cardinal point in the theory and practice of the Philadelphia Society for Alleviating the Miseries of Public Prisons, and this Society did its best to infuse this doctrine into the Pennsylvania system of prison administration. Before 1830 it was very generally asserted that reformation, as well as deterrence and social revenge, was to be regarded as a chief aim of punishment, though the offender was still regarded as an unregenerate free moral agent.

This theory of crime received a severe shock in the “forties” from the investigations of Dorothea L. Dix and others, who showed the great prevalence of insanity and idiocy among the delinquent classes. It could

scarcely be denied even by the traditional jurists that the exercise of free will was likely to be seriously impeded by insanity or feeble-mindedness. From 1850 to the beginning of the present century the most notable advances toward a more intelligent conception of crime and its treatment consisted in the gradual but definite triumph of the notion of detention and punishment as agencies for reformation rather than as instruments of social revenge.

For more than a century of its history the penal, reformatory and correctional institutions of Pennsylvania were limited to the county jails and the few and scattered workhouses, which were erected mainly in conjunction with the almshouses. In the jails there could be no approach to anything like a differentiated treatment of delinquents. In them were herded promiscuously those imprisoned for debt, those convicted of crime and those accused or held as witnesses; those of all ages and both sexes; those convicted of all categories and grades of crime punishable by imprisonment; those of all mental states—normal, feeble-minded, neurotic, psychotic, epileptic. The few colonial workhouses were employed as little more than an agency for suppressing vagrancy.

The first step in a differentiated treatment of crime and criminals came with the erection of a semi-state prison in the Walnut Street Jail in 1789-90. This provided for a partial differentiation between those convicted of the more serious crimes and those convicted of petty offenses or awaiting trial. It did not however, attempt any scientific differentiation on the basis of age, sex or mental state. Children and adults, male and female, sane and insane, were confined in contiguity. The opening of the State penitentiaries at Allegheny and Philadelphia in 1826 and 1829, with their fundamental principle of solitary confinement, carried further the process of differentiation, but still continued to apply the same general type of treatment to all incarcerated inmates. It was a system of separation rather than of a differentiated treatment of special types of prisoners.

The second important development in the direction of specialization in the provision of institutional treatment of delinquents appeared in the establishment of a House of Refuge for juvenile delinquents in Philadelphia in 1828. Though this was at first a private rather than a State institution and

was of very limited capacity, it marked an epoch in the progress of Pennsylvania penology by making possible some elementary differentiation on the basis of age, degree of criminality and relative susceptibility to reformation. The next attempt at further differentiation came with the erection of the State Hospital for the Insane at Harrisburg between 1841 and 1851, chiefly as a result of the agitation initiated by Dorothea L. Dix. This and the other State hospitals for the insane, subsequently erected, provided for a treatment of the more important types of mental disorder, though no adequate provision was made for removing the insane from the prison. Not until 1905 was an act passed providing for the erection of a State hospital for the criminal insane at Fairview which was opened in 1912.

During the quarter of a century following 1850 there was an active agitation to provide a means of differentiating the treatment of criminals on the basis of age, sex and degree of criminality. The first important achievement in this direction was the further development of reform schools for juvenile delinquents through the removal and enlargement of the Philadelphia House of Refuge in 1850-54 and the erection of the Western House of Refuge at Allegheny during the same period. Juvenile delinquents, if petty offenders, could thereafter be removed from their degrading confinement in the state prison or worse county jails and receive the properly specialized treatment which their circumstances demanded. No provision for the differentiated treatment of the less definite and confirmed types of adult delinquents was made until the opening of the reformatory for men at Huntingdon in 1889 and the authorization of the State Industrial Home for Women at Muncy in 1913. The provision of reformatories and juvenile correctional institutions marked a double process of differentiation, in that these institutions not only called for a diversity of treatment according to age, sex and degree of criminality, but also from the fact that they were clearly differentiated from the State prisons and the county jails in making reformation rather than punishment or detention their chief aims.

Along with this development of a properly differentiated system of treating the delinquent population, has gone the growth of specialized institutions for dealing with the closely related class of defectives, which was once treated indiscriminately along with the delinquent classes when its members were guilty of criminal action. The State institution for feeble-minded at

Polk, opened in 1893, and at Spring City, provided by an act of 1903, and the State Village for Feeble-minded Women at Laurelton, not yet available for use, are designed to furnish scientific treatment for large numbers of those who would today be confined in the state prisons or county jails, if the ideas and institutions of 1840 prevailed. Even an institution for inebriates was contemplated in an act of 1913.

But this vital and all important process of the differentiation, classification and specialized treatment of the delinquent and defective classes has now proceeded far beyond that most elementary stage of furnishing separate institutions for dealing with the most general classes of delinquents and defectives. It has been found that the terms defective, insane and criminal have only a legal significance and are practically useless when involving the problem of exact scientific analysis and treatment. Each general class of delinquent boys, of defective girls or of criminal adults, for instance, is made up of distinguishable and distinct types which demand specialized treatment in the same way that it is required for one general class as distinguished from another. Though it is as yet very imperfectly developed, the present tendency is for each institution to differentiate into a number of specialized departments, each designed to provide the proper treatment for one of these types.

Finally, within the last decade beginnings have been made in what is likely to be an important future development, namely the non-institutional care of the less pronounced and confirmed types of delinquents, particularly of delinquent minors. The developments along this line have, up to the present, consisted chiefly in the adoption of parole systems in all the State penal, reformatory and correctional institutions and in a more liberal use of the suspended sentence and probation. The recently established Municipal Probation Court of Philadelphia is a pioneer in Pennsylvania in this promising new development in the preventive treatment of the less confirmed type of delinquents.

Looking at the whole matter as it stands today, it cannot be said that conditions in Pennsylvania are in any material respect either better or worse than in other progressive States, except in the one matter of the useful employment of the convict population. Here, as elsewhere, some lucky

chance has placed a man or a woman of exceptional qualifications at the head of an institution, one who has by his strong personal initiative made the best of a bad situation, as in the case of the Eastern Penitentiary, or who has, with something akin to genius, seized upon a new opportunity, as in the case of the Girls' School at Darlington and the new Penitentiary foundation at Bellefonte. But these are sporadic and exceptional developments and have furnished no new principle of a revolutionary character to mark the dawn of a new era in penal administration.

Meanwhile the hopeless and demoralizing idleness to which most of the inmates of the Eastern Penitentiary and of most of the county institutions of the Commonwealth are doomed, is a spectacle in which the people of Pennsylvania can take nothing but shame. But even if this is remedied, as it should be at once by drastic legislative action, Pennsylvania will have done no more than reach the level of penological theory of the Quaker innovators of the seventeenth and eighteenth centuries. The step is an imperative one, but it will not restore to the Commonwealth the proud position of leadership which once was hers, which is still, by virtue of past achievements and by common fame, attributed to her.

While we have thus been dreaming, tardily and ineffectually putting into effect the aspirations of a long-distant past, a new penology has come into being, based not on humanitarian sentiment or on "the common sense of most," but on the scientific study of the delinquent and his environment. New sciences of psychology, psychiatry and sociology have been forged to meet the conditions of the new day and these have furnished us with a new basis for penological experimentation. We have learned that the criminal is not merely a person who has in the exercise of an unfettered will chosen the evil rather than the good, but a person of complex personality shaped by heredity and environment to what he is, none the less a menace to society than the older conception made him, not the less requiring restraint and correction, but demanding and deserving individual treatment according to the nature which has been developed in him. We have learned from recent scientific study of the most rigorous and trustworthy sort that from 50 to 60 per cent. of the inmates of our correctional institutions are abnormal—feeble-minded, insane, psychopathic—to the point of irresponsibility, to all intents and purposes the same kind of people that fill our hospitals for the

insane and institutions for the feeble-minded. We have also learned, from sociological case studies, that a very large proportion of those that the psychiatrist would class as normal are the victims of neglected childhood and of the depraving influences of the institutions in which they have spent a great part of their young lives.

It seems clear that this new knowledge makes for a new classification, based not, like that of the Elmira system, on behavior in confinement, nor, like that of the current penology, on the character of the crime committed, but on the exact study of the individual and that the treatment accorded him must be adapted to the results of such study.

Here, then, is the new opportunity for a further advance out of this slough of despond—an opportunity not inferior to that which this Commonwealth so superbly grasped in its heroic youth—to bring its penal administration into conformity with the newer conceptions of delinquency. Tinkering the old machine is not enough. It must be remodeled altogether. Adding to the powers of a board of inspectors here, curbing them there, setting up new boards and commissions to direct the doing of this, to restrain the doing of that—all these are but a part of the old game, which will after all continue to be played in very much the old perfunctory way. What is demanded is a genuine reconstruction of the penal system of the Commonwealth, one which shall, with as little disturbance to the existing management of the several institutions as possible, put at their service all the resources of the new knowledge of crime and its treatment. It is the purpose of this report to suggest the lines of this future development of our penal system.

III.

GENERAL CHARACTERISTICS OF PRESENT PENAL SYSTEM.

As the foregoing outline indicates, the several State institutions of a penal, correctional and reformatory character, with the two Glen Mills Schools (which, though largely under private management, are essentially public institutions) have been developed at different times, under the influence of changing conceptions of social responsibility for different types of offenders. As a result of this circumstance each is separately managed by a

board of inspectors or managers, which exercises complete control over the policy of the institution to which its authority extends. This Board appoints the Warden or Superintendent, fixes his or her compensation, determines the industrial and educational policy of the institution and, under the authority of the Legislature, disburses the funds appropriated for its maintenance. The disciplinary policy of the institution is almost invariably entrusted to the Warden or Superintendent and, as is natural, if that official happens to be a person of strong individuality and initiative, his policy in practice, if not in theory, governs the entire administration. Nowhere is there a centralized authority exercising a general control or an effective influence. The only approach to such a general agency is the State Board of Public Charities, which may investigate and require the submission of an annual report, and the Prison Labor Commission, which exercises a general supervision over the industries of the two penitentiaries and the Huntingdon Reformatory, but which has no effective power to carry its plans into execution. There is, accordingly, no uniform policy, even in the case of institutions like the two Glen Mills schools, which have a similar type of inmates and an identical aim, nor in the case of all the institutions under consideration in matters where their problems and needs are the same. That there are advantages in this policy of separate control cannot be denied. It gives to an energetic and progressive superintendent or board of managers a degree of initiative in reform and experimentation which, under a highly centralized control of all the institutions, it would be difficult to secure. On the other hand it may have the effect of depriving the individual institution, because of its poverty or because of the reactionary character of its administration, of the benefits of an advance which may have been made elsewhere. There could not be a better illustration of the unevenness of development resulting from this lack of co-ordination in the Pennsylvania prison system than the fact that the Eastern Penitentiary was compelled to wait for the initiative of its present Warden for the partial adoption of the congregate system, which had for forty years existed in the Western Penitentiary, and which had everywhere demonstrated its superiority over the system of solitary confinement.

Upon the whole, however, what strikes the thoughtful observer is not the diversity of policy and management among these institutions, even where they have avowedly different aims, but their conformity to a common type,

and that the prison type. With only two exceptions—Sleighton Farms and the Training School at Morganza—the persistent shadow of the Penitentiary rests upon them all. It is true that in the new Central Penitentiary on its broad acreage at Bellefonte and in the Eastern Penitentiary, so far as the physical and industrial conditions render possible, the shadow has been lifted, but it is safe to say of the penal system of the State as a whole, that it is still too much dominated by the ancient ideal of demonstrating to the inmates that “the way of the transgressor is hard.” Even in institutions of a purely reformatory character, while they leave little to be desired in the way of healthful conditions of living, orderly administration and educational opportunities, the reformation of the wrong-doer is still too much sought through a system of stern repression, of “iron discipline”—a system which, as all experience shows, defeats its end by crushing out the finer elements of character on which the redemption of the individual must depend. An almost invariable incident of this type of disciplinary control is the persistence of the policy of securing good conduct through punishment—often severe punishment for trivial offenses—rather than by the more enlightened and humane method of holding out incentives to good behavior, either by the grant of special privileges or by putting on the inmates themselves the responsibility for the good behavior of all.

Other instances of the persistence of the traditional attitude toward the offender are the almost complete lack throughout our penal system of a scientific, balanced ration, such as has in the experience of prison administrators in other States, as notably at Sing Sing Prison in 1916, and more recently in our army camps, demonstrated the value both for health and efficiency and from the point of view of economy of a scientific management of the problem of food supply for large masses of men; the general indifference to outdoor recreation and exercise, so essential to the health and morale of the inmate body; the meagre provision for any education worthy of the name; the all but complete lack of comprehensive and well rounded systems of vocational or industrial training, on which the efficiency of prison labor and the ability of the inmates to “make good” in the world of industry after their release so largely depends; the demoralizing idleness which is still after three decades of effort the most marked characteristic of our prison system; and, finally, the insufficient care for the physical and mental health of the inmates of our correctional

institutions, which still for the most part mingle indiscriminately together the tuberculous and syphilitic with those who are sound in body and the insane, psychopathic and defective with those who are sound in mind.

Many of these conditions which continue to put the brand of the prison on the inmates of our correctional institutions are doubtless due to the survival of the Bastille type of prison architecture, which is exemplified in the Eastern and Western Penitentiaries and in such structures as Moyamensing Prison in Philadelphia, the Convict Prison at Holmesburg, the Philadelphia House of Correction and many others. It is scarcely too much to say that no human being is vile enough to deserve confinement in such a place or dangerous enough to need it. Even the most unbending of the old type of prison official will concede that 80 per cent. of the inmates neither need nor deserve to be confined behind triple bars of steel or in cells like catacombs or within walls like those of Egyptian tombs. Keepers and inmates alike lose half their humanity by confinement in these grim and forbidding structures. No reforming influence however humane and generous, can long survive in their atmosphere.

Public opinion is at last moving away from this antiquated type of prison architecture to the newer type represented in the honor prison at New Hampton Farms in New York and in our Commonwealth in the cottage colonies at Sleighton Farms, Glen Mills, Morganza, and Muncy. The change which comes over the men who are transferred from the Western Penitentiary to the new prison site in Centre County is a sufficient commentary on the older type of prison, and demonstrates beyond peradventure the duty of affording to all of our convict population a similar life of freedom and opportunity. This result, so desirable from every point of view, could in large measure be attained in a short time by equipping the Eastern Penitentiary with a suitable area of farm land in the Eastern Section of the State and by making immediate provision for the institution of State industrial farms for the convicts confined in the county prisons, as is recommended elsewhere in this report.

IV. PRISON LABOR.

The conditions existing in the penal institutions of the Commonwealth with respect to the employment of the inmates in useful industry have been so fully set forth in the Emergency Report submitted by the Commission to the Governor in September last (a copy of which is annexed to this report) and in the comprehensive study of the problem by the Penal Commission of 1913-1915 (submitted to the General Assembly under date of February 15, 1915) that it is not deemed necessary to go into the matter at length in this place. It suffices to call attention to the fact that the conditions described in those reports have not in any material respect been improved. Of approximately 10,000 inmates in the penal and correctional institutions of the State, less than one-half are usefully employed, not more than one-fourth in productive labor. The economic waste of such a system extended over a century is scarcely less appalling than its inhumanity. By the law a large part of this interminable procession of offending and suffering humanity has been condemned to hard labor. In actual practice nearly all of it has been doomed to wasteful and demoralizing idleness.

The law of June 1, 1915, "providing a system of employment and compensation for the inmates of the Eastern Penitentiary, Western Penitentiary and the Pennsylvania Industrial Reformatory at Huntingdon" and creating a Prison Labor Commission to carry its provisions into effect, has proved almost wholly inoperative, owing primarily to the failure of the Legislature to provide for the compulsory purchase of prison-made goods by the Commonwealth or the political divisions thereof or by public institutions. As a consequence, out of a total population of 3200 in the three institutions to which the authority of the Commission extends, at the close of the year 1918 only 169 were employed under the direction of the Commission. These were distributed as follows:—

Eastern Penitentiary, population	1,371
Caning chairs	16
Cigarmaking	11
Shoemaking	42
Knitting hosiery	38
	— 107
Absolutely idle	839

Western Penitentiary, population	720
Broommaking	10
Brushmaking	2
Weaving	18
	—— 30
Absolutely idle	393
Huntingdon Reformatory, population	579
Auto-tagmaking	32

Whether considered as a relief from the crushing burden of expense that our penal establishments entail, or as a remedy for the physical and moral degeneration resulting from enforced idleness, or as a means to equip the inmates for lives of industry and usefulness after their release, a system of prison labor which produces the results set forth in these figures stands self condemned.

To make the plan embodied in the law of 1915 effective, it should further provide:

- (1) That municipalities as well as the Commonwealth and the political divisions thereof and all public institutions shall be required, as far as may be practicable, to supply their needs from the labor of the penal and correctional institutions;
- (2) That the authority of the Commission or of any body in which its powers may be vested shall extend to the reformatory institutions at Darlington, Glen Mills, Morganza and Muncy and to all State, county and municipal institutions of a penal or correctional character;
- (3) That the power of such Commission or body to regulate prison industry be extended to all forms of labor activity of the inmates of such institutions, including farming, roadmaking, land reclamation, forestry, etc.;

(4) That such Commission or body be empowered to determine the compensation of prisoners for industrial and other work performed by them and the method of applying such compensation to the use of such prisoners or their dependents;

(5) That the strict "State use" plan be modified by permitting the sale in the open market, at not less than the market price, of any surplus product resulting from the labor of the inmates over and above the product disposed of as provided in the act.

V.

THE COUNTY PRISONS.

In Pennsylvania, as in most, if not all, of the other States of the Union, the county jail is the despair of those who look for a better day in the treatment of the wrong-doer. The admiration which our experiments in the reformatory treatment of the young have excited in eminent foreign penologists has turned to loathing when their attention was directed to the county jails. Sir Evelyn Ruggles-Brise, the distinguished head of the English prison system, in an article published a few months after his visit to this country in 1910, described them in the following terms:

"In these gaols it is hardly too much to say that many of the features linger which called forth the wrath and indignation of the great Howard at the end of the eighteenth century. Promiscuity, unsanitary conditions, absence of supervision, idleness and corruption—these remain the features in many places. Even the 'fee' system is still in vogue. The gaolers are still paid by fees for the support of prisoners, and commitments to gaol are common when some other disposition of the case would have been imposed had not the commitment yielded a fee to the sheriff, who is usually in charge of the gaol. In many gaols there are not facilities for medical examination on reception, for ventilation, for exercise, or for bathing.... The foreign delegates were amazed at this startling inconsistency between the management of the common gaols and that of the State prisons and State reformatories. The evils to which I refer are well known and deplored by that body of

earnest and devoted men and women in all sections of American society with whose lofty ideals on the subject of prison reform and generous aspirations for the humane treatment of the prisoner, the Washington Congress made us every day familiar, but they seem helpless and almost hopeless.... I was appealed to by leading men in more than one State, as British representative, to publicly condemn the system, and this I did, at a risk of giving considerable offense. Until the abuses of the gaol system are removed, it is impossible for America to have assigned to her by general consent a place in the vanguard of progress in the domain of '*la science penitentiaire*.'"

Your Commission desires to submit as its considered judgment that the foregoing statement does no injustice to many of the county prisons of this Commonwealth, and that the Legislature can do no greater service, nor one that will reflect more credit on the Commonwealth, than to sweep away the entire county jail system without delay.

Attention has been called elsewhere in this report to the deplorable conditions of idleness which prevail in the prisons of our Commonwealth. These conditions are at their worst in the county institutions. In the last six years the average daily number of prisoners in the county jails of the Commonwealth has been about 6500. Only about one-fourth of these have some form of employment other than domestic service. But when all of the returns are in with regard to the work accomplished, the number of days spent in complete idleness in the course of a year will average more than one million. If we regard the labor of the prisoners as worth fifty cents a day, the amount of waste thus exceeds \$500,000 annually.

In order to obviate this condition of affairs, the General Assembly in 1917 passed an Act (No. 337, P. L. 1917), vesting in the officers in charge of county prisons the privilege of allowing the prisoners to work on county and poorhouse farms. Although only twenty-seven counties have taken advantage of this Act, its results have been very beneficial. The workers have improved in health, strength and morale, and the produce of their labor has been of material help in the up-keep of the institutions. Unfortunately, the operation of this Act terminates with the close of the war.

A more comprehensive Act was proposed by the Penal Commission of 1913-1915, which recommended the establishment of six industrial farms to be controlled by the State, to which all persons convicted of crime or misdemeanor, and now committed to county institutions, should hereafter be sent. This admirable measure was, however, amended in such a way as to leave the initiative in the creation of such farms and the control thereof to the County Commissioners of the nine groups of counties into which the State was divided for the purpose (No. 399, P. L. 1917). This legislation has fallen flat, not one of the industrial districts having carried the scheme into effect.

Your Commission submits that there is no remedy for the condition of affairs above described other than the complete assumption by the State of the custody and care of the offenders, whether felons or misdemeanants, who are now committed to the county institutions.

Farming for prisoners, as our investigations in other States have clearly shown, has passed beyond the experimental stage. The State of Massachusetts, some years ago, established a penal farm for misdemeanants at Bridgewater. A large tract of ground was purchased, consisting largely of swamp and abandoned land, which, by the use of fertilizers and by drainage, has been brought to a high degree of cultivation. This enterprise has been so signally successful that it is now proposed to move the State Prison at Charlestown to this same farm at Bridgewater.

Perhaps the most successful experiment of the kind has been made in Indiana, where the State has taken over the custody of misdemeanants on the plan which was recommended by the Pennsylvania Penal Commission of 1913-1915, a recommendation which is renewed in this report. The Superintendent of the Indiana State Farm makes the following report:—

“The farm had an average daily population, in 1918, of four hundred and sixty-two prisoners. All institution buildings and outbuildings, the sewer system, power plant, heating and water systems, land reclaiming, farming and gardening, has been done with the labor of misdemeanants at a surprisingly low cost for guards. The Indiana State Farm is allowed fifty-five cents per man per day for its entire maintenance, while the same man in jail, at the present time, will cost

more than one dollar per day for the gross maintenance. The fifty-five cents per man per day pays the entire pay roll, subsistence, fuel, light, heat, medical services, clothing, transportation, field and garden seeds, fertilizers, common labor, tools and all other items of maintenance....

“The effect that the Indiana State Farm has had on the jail system of the State is indicated by the following figures: In the year 1914 there were 18,130 commitments to county jails, in 1915, 14,644, and in 1916, 9,896. The doors of the State Farm were opened April 12, 1915, and the full effect of the State Farm was not noticeable until the close of the year 1916. The moral effect of the institution on the misdemeanor class was one very important factor in reducing the jail commitments.”

During the year ending September 30, 1918, this penal farm was two-thirds self-supporting, and it is confidently expected that the institution will soon be entirely self-supporting.

New York City has established a reformatory farm of 630 acres at New Hampton, N. Y., to which boys and men from sixteen to thirty years of age are committed. They have no bars, no wall, no restraining thing, except supervision. They have no cell for punishment. From the farm they secure most of their provisions. In handling 2000 prisoners, they have lost only five. The health of the inmates is greatly improved. It is estimated that 45 per cent. of the prisoners there were addicted to the drug habit. Most of them were sent away restored. What they needed was to be built up by fresh air, good food and exercise, and to be employed in wholesome work. In fact, they have been taught the dignity of labor—a thing to which most of them had hitherto been strangers.

But we need not go beyond the limits of our own State to prove the benefit and success of farming for misdemeanants. The administration of the Allegheny County Workhouse illustrates the economy of providing employment for prisoners on an industrial farm. Here the average daily number of inmates in 1918 was 722. The daily average cost of each inmate was 81 cents, but after deducting the earnings of the inmates, the net cost was only 32 cents. This means that the inmates earned 49 cents a day toward their own maintenance. Their bookkeeping indicates merely the cost

of raising the crops. If the institution had charged itself with the produce used by it at the prevailing market price, the net cost would have been much less. The farm has 670 acres, of which 560 acres are farmed and used as pasture. The inmates are continually coming and going. Many of them are committed for ten days or less, and a large part are sentenced for 30 days, while comparatively few of them remain longer than one year. This shows that a great deal of efficient work can be secured, even from those who serve for short terms.

A similarly striking result has been attained in Delaware County under the law of 1911, empowering the judges of the Courts of Common Pleas to release on parole convicts confined in county jails or workhouses under the supervision of designated probation officers. Acting under this law, the President Judge of that county has during the year 1918 paroled a number of inmates of the county jail to work on farm lands rented for the purpose with the remarkable result that only two of the men so paroled made their escape (both being afterwards retaken) and that nearly \$14,000 worth of crops were sold for cash in addition to the vegetables used and stored in the prison. The net profit is estimated at \$7,000.

Logically, we cannot avoid the conclusion that the State ought to assume the care of all offenders. The laws are made by the State, and the indictments charge the accused with offences against the "peace and dignity of the Commonwealth," not against the peace and dignity of the county, municipality or borough. The conclusion is inevitable that the Commonwealth should assume the responsibility for the protection of the community from both felons and misdemeanants. And since such an arrangement as has been proposed will result in reduced taxation, uniformity of management and in greater facilities for the education and reformation of the delinquent, we feel that the establishment of State industrial farms to receive the delinquents now committed to the county prisons should receive your favorable consideration.

The bill submitted to carry this recommendation into effect omits the counties of Philadelphia and Allegheny from its operation. Allegheny County already has a prison farm which in many ways may be considered a model of its kind. Philadelphia has a farm in connection with the House of

Correction which furnishes employment to many prisoners and supplies much produce for the institution. We recommend that at some early date the City of Philadelphia may, by the purchase of more land, extend the advantages of a penal farm to its convict prison and in some way combine under one management the entire penal system of the municipality.

The fee system, whereby the sheriff or warden receives a stipulated sum each day for the board of prisoners, is so liable to abuse that we submit a proposition to abolish the practice in all our prisons. Whenever the profits from boarding the prisoners is a part of the remuneration of the officer in charge, the tendency is doubtless to exploit the prisoners, or to reduce to a minimum the supply of food, in order to derive the greater profit.

In 1915 a comprehensive study of the cost of boarding the prisoners in the largest 25 counties of the Commonwealth indicated that the average daily cost of food per prisoner in the 15 prisons where the food was purchased on the contract system was 12 cents, and in the 10 counties where the fee system was in vogue 33.7 cents, the difference in favor of the contract system being 21.7 cents per day for each prisoner.

We estimate that in these 10 counties alone the saving to the taxpayers by the adoption of the contract system will be at least \$50,000 annually. The economy of the proposition is evident, making due allowance for providing in some counties additional compensation for the official in charge of the prison. In all cases where a change has been made from the fee system to the contract system, the food has improved in character, thus tending to the betterment of the health and morale of the inmates.

Moved by these considerations, the General Assembly in 1909 provided that in all counties having a population of 150,000 or more, the food for the prisoners must be purchased by contract. We are now proposing to extend this principle to all the counties of the Commonwealth, with the understanding that no such change is to take place during the incumbency of the officials who are at the present time in charge of the prisons.

VI.

PROBATION AND PAROLE.

(a) Under the law of May 10, 1909, the several courts of criminal jurisdiction are invested with the power of suspending sentence on certain classes of convicted offenders and of placing such offenders on probation instead of committing them for definite or indeterminate periods of imprisonment. Probation officers, charged with the duty of supervising the behavior of such probationers, are appointed by the judges to serve in their respective counties. In this Commonwealth, as in many others, experience has demonstrated that there is little uniformity in the practice of the courts in suspending sentence or of the probation officers in exercising their powers.

Conceived as a mere incident of the sentencing power, to be exercised only in exceptional cases, the suspended sentence and probation are beginning to disclose themselves as a momentous, not to say revolutionary step in the progress of penology, not less important in its ultimate consequences than the substitution a century ago of imprisonment for the death penalty and other forms of physical punishment. Like the older forms of punishment which it superseded, imprisonment too has proved a failure, so far at least, as the newer aim of punishment, the reformation of the wrong-doer is concerned. And we are coming to see that the protection which society enjoys through the imprisonment for a few months or years of a small proportion of the criminal class is dearly purchased by a system which returns the offender to society less fitted than before to cope with the conditions of a life of freedom. More and more, as we develop a probation service worthy of the name, will the courts be reluctant to commit men, women and children to the demoralizing associations and discipline of institutional life and will give them their chance to redeem themselves under competent guidance and supervision among the associations and activities of everyday life.

Even under existing conditions it is safe to say that far too many adult and youthful offenders convicted of criminal offences are committed to prison and far too many delinquent children to reformatories and other correctional institutions. Your Commission believes that the suspended sentence should

be more liberally employed by the courts of the Commonwealth under strict conditions requiring a life of useful industry under careful supervision; that children under 12 years of age should never be committed to penal or correctional institutions but rather, where institutional care is deemed necessary, to parental schools such as have been established in other States as a part of the regular educational system; and that children of larger growth, say from 12 to 16, should, wherever possible, be placed on probation or put under private guardianship.

Those considerations have led the Commission to the conclusion that the whole subject of the suspended sentence and probation in this Commonwealth should be thoroughly studied in order that the principles that should govern it may be carefully defined and its procedure worked out, supervised and put on a uniform basis. New York and other States have for this purpose created a permanent probation board or commission and the success which has attended their labors suggests the institution of a similar body in this Commonwealth.

(b) The indeterminate sentence, which made its appearance in this Commonwealth in the law of May 10, 1909, has passed through several phases to a state in which its purpose is almost completely defeated. In its original form it provided that the maximum term to be imposed upon a convict who should be sentenced to imprisonment in either the Eastern or the Western Penitentiaries should not exceed the maximum time prescribed by law and that the minimum term when not fixed by law, should not exceed one-fourth of the maximum time. This law was amended by an Act approved June 19, 1911, striking out the restriction as to the minimum sentence, thus leaving to the courts complete discretion to fix the minimum to be served at any period short of the maximum. Many of the courts have in frequent instances virtually nullified the indeterminate sentence principle by imposing minimum sentences so excessive as to bring the judicial office into disrepute. Sentences of from 18 years to 20 and from 19 years to 20 have been common, and there have been cases so grotesque as sentences of 19 years 11 months, or of 19 years, 11 months and 29 days to 20 years, of 23 years and 3 months to 25 years and of 27 to 28 years. These are only the more extreme illustrations of a practice which has been common enough to

justify a demand for a law which will result in greater uniformity in the matter of imposing sentences for crime.

At its best the maximum-minimum form of the indeterminate sentence is an unsatisfactory compromise between the ideal aim of penologists and the traditional attitude of the courts, which cling tenaciously to their ancient prerogative of “making the punishment fit the crime.” That the power of determining the period of imprisonment requisite to meet the demands of justice and the interests of society may safely be confided to other than judicial hands has been conceded in the case of all offenders entitled to commitment to reformatories, who are sentenced to an indeterminate term limited only by the maximum fixed by law, or, in the case of minors, to the attainment of their majority, and who may be released on parole in the discretion of the boards of managers of the institutions to which they are committed. It is only in the case of hardened offenders or of those guilty of certain major offenses that a minimum sentence is imposed.

For more than a generation prison reformers have urged the extension of the pure indeterminate sentence to this class of offenders also. Their logic is sound; it is the facts that are against them. The argument runs like this: The offender should be kept in confinement only until he is fitted by his prison experience to lead an honest and useful life; when this end is attained he should be released. The answer is that the prison doesn't in fact reform the wrong-doer; that good behavior under the conditions of prison life is no assurance of the intention or capacity of the prisoner to lead an honest and useful life after his release, and that the inspectors or other paroling authority have no other guide to go by in determining the inmates' fitness for a life of freedom than his prison record. If the reformer makes the obvious retort—“then reform your prison so that it shall reform its inmates, and reform your paroling authority so that it shall make its determination on all the facts of the inmate's personal history including a study of his mental conditions, his heredity and the social influences that have shaped his character,” he is admitting that we are not yet ready for the complete acceptance of the indeterminate sentence in all classes of cases.

But there is a middle ground between the position of the extreme reformer and that which has been assumed by the courts of this Commonwealth. If

there is to be anything short of a fixed sentence, declared by law, it should be a reasonable minimum which should also be declared by law. The policy of the indeterminate sentence is that the delinquent shall be supervised and guided and his capacity to lead an honest and useful life tested by actual experience under normal conditions of living for a period of years long enough to try out his capacity to readjust himself to a life of freedom in society. For this reason an adequate interval between the expiration of his minimum sentence, when he becomes eligible to parole, and the expiration of his maximum sentence, when he becomes free from judicial control, should be guaranteed by law.

There is great diversity of opinion as to the best form of paroling authority. Generally, as in this Commonwealth, this power is lodged in the inspectors or managers of the several institutions or, in the case of commitments to county prisons, in the courts of criminal jurisdiction. In some States, as in New York, a distinct Board of Parole is constituted which visits the convict prisons at intervals and hears and determines all applications for parole that may be awaiting determination. Neither system has worked with complete satisfaction. Under both the grant of parole is largely a perfunctory matter, the inmates who have served their minimum sentences being generally admitted to parole at once, except in those cases, comparatively rare in number, where the applicant has been penalized for misconduct while in confinement. It would seem, therefore, that the first step toward a reform of the paroling system is not to set up a new paroling authority but to devise some more effective machinery to put before the existing authorities all the essential facts as to the applicant's mental, moral and physical capacity to conduct himself as a self-respecting, useful member of the community. A second, but not less necessary step, is such a change in the spirit and method of prison discipline as will develop in the inmates by actual practice the qualities of self-respect and self-reliance, the sense of honor and of responsibility and the habit of co-operative action so essential to fit them for a life of freedom and responsibility, and at the same time to equip them with the habits of industry and the vocational skill which will enable them to make good in the life that awaits them beyond the prison-wall.

VII. GENERAL CONCLUSIONS.

In the foregoing analysis of the penal system of this Commonwealth, the Commission has endeavored not only to present a picture of the existing conditions in the light of modern conceptions of penology but to point out, also, the lines of a sound and progressive development of the system. Most of the suggestions thus made have already been embodied in the penal systems of other states and of enlightened communities beyond the seas. Especially is this the case in such matters as the general employment of the prison population in useful and productive labor and in the substitution of farm and cottage colonies for the old type of prison. In a few of the larger cities and in some institutions promising beginnings have been made in the mental examination of delinquents with a view to the provision of specialized treatment for those found to be mentally afflicted or seriously defective. But in no State or country, as yet, have all these improvements been welded into a comprehensive system which makes them available for the entire delinquent population. The inertia or indifference which leaves the extension of these benefits to chance or to the slow contagion of example is unworthy of a great and progressive Commonwealth which has in the past more than once demonstrated its capacity for leadership in penal reform.

It is evident that the general adoption in this State of these modern improvements in the treatment of the criminal problem can be effected only through the institution of a central agency adapted to secure a co-ordination of effort and a uniformity of development which under the present system of separate control has been demonstrated to be impossible. It seems equally evident, however, that the system of separate management of the several institutions with their diverse aims and problems possesses advantages which we would not willingly sacrifice to an ideal unity. For this reason the Commission has not deemed it wise to recommend the example of other States which have committed the management of all their correctional establishments to a central board of control. Moreover, with such a body as the Board of Public Charities already vested with a certain authority over the penal institutions of the State, it has not been deemed desirable to recommend the creation of a new and independent body to

exercise a new jurisdiction over such institutions. It seems better to utilize the authority which already exists, to enlarge its range of functions to meet the needs of the proposed development and to commit the exercise of these functions to a standing committee analogous to the existing Committee on Lunacy. Through such a committee of the Board of Public Charities your Commission believes that the desired co-ordination and future development of the penal system of the Commonwealth can best be secured.

VIII. RECOMMENDATIONS.

Upon the foregoing facts and conclusions the Commission submits the following recommendations, which are herewith submitted for such action as the General Assembly may deem proper:—

First.—The Commission recommends that the General Assembly provide for the enlargement of the Board of Public Charities by the addition of two members thereto, at least one of whom shall be a woman, and by the institution of a standing committee of five members of such Board, at least one of whom shall be a woman, such committee, which shall be chosen annually by a majority vote of the Board, to be known as the “Committee on Delinquency” and to be vested with the following powers:—

(a) To inspect and investigate the condition and management of all penal, correctional and reformatory institutions within the Commonwealth and inquire into all complaints against the same and report thereon, with recommendations of appropriate action, to the Board of Public Charities, the Governor, the General Assembly, or the Courts, as the circumstances may require;

(b) To institute, maintain and supervise a medical service adapted to the examination of the inmates of such institutions and the proper professional treatment of all such as are mentally or physically afflicted or deficient;

(c) To make recommendations to the governing authorities of all such institutions for the improvement of the sanitary and hygienic conditions, the

medical and hospital equipment, and the medical service thereof;

(d) To transfer inmates of institutions within its jurisdiction to other institutions owned, managed or controlled by the Commonwealth or any political subdivision thereof, or, if suitable arrangements can be made, to other institutions, where such inmates may receive treatment more suitable to their mental and physical condition;

(e) To institute, maintain and supervise in institutions within its jurisdiction a system of correctional and reformatory education;

(f) To institute, maintain and supervise a system for the employment of the inmates of institutions within its jurisdiction;

(g) To prepare and submit to the Board of Public Charities not later than the first day of December of each even-numbered year, a biennial budget for the Committee and such of the institutions within its jurisdiction as are wholly or partly supported by the Commonwealth, and for that purpose to require of such institutions such reports from time to time as the Committee shall deem necessary; and

(h) To make rules and regulations establishing a uniform system of accounting and bookkeeping in all institutions within its jurisdiction.

It is also recommended that the Committee on Delinquency be authorized and directed to choose a Secretary, not a member of the Board of Public Charities, at a salary of \$7500 per annum, who shall be the executive officer of the Committee and an expert in the care and treatment of delinquents, and who shall be known as the "Commissioner of Delinquency."

Second.—The Commission further recommends that the General Assembly provide by appropriate legislation for the employment of all the able-bodied convicts of the Commonwealth in useful and, so far as possible, in productive labor, and especially, that it vest in the Committee on Delinquency the powers of the Prison Labor Commission and the functions of the Business Agent of such Commission and enlarge such powers and functions as suggested on page 15 of this report.

Third.—The Commission further recommends the enactment of a law establishing four State Industrial Farms, to receive, care for and provide for the useful employment of the inmates of county prisons and jails and of persons hereafter convicted of any offense punishable by imprisonment in any county jail or prison who have been or shall hereafter be sentenced for a term of thirty days or more.

Fourth.—The Commission further recommends that the Act of Assembly approved July 17, 1917 (No. 337), providing for the employment, during the continuance of the war, of inmates of county jails at agricultural labor on any county or almshouse farm, be amended so as to continue its operation indefinitely after the conclusion of peace.

Fifth.—The Commission further recommends that the General Assembly provide for the purchase of a tract of land, of not less than 600 nor more than 1200 acres, to be used for the benefit of the Eastern Penitentiary as a prison farm.

Sixth.—The Commission further recommends that a law be enacted prohibiting fees or allowances and contracts for furnishing meals to the inmates of county jails or other penal institutions of the Commonwealth.

Seventh.—The Commission further recommends that the Act approved June 19, 1911, authorizing the courts in the case of a person sentenced to a penitentiary to fix as the minimum term of imprisonment any period less than the maximum prescribed by law for the offense of which such person was convicted, be amended by a provision that the minimum limit of the sentence imposed shall never exceed one-third of the maximum prescribed by the Court.

In the foregoing recommendations the Commission has confined itself to matters requiring legislative action and to such only as seem to it to be essential to a consistent, integrated policy of penal administration. All other matters with respect to which the Commission has given expression to its views are either subsidiary to those on which immediate legislative action is

recommended or are such as may be properly referred to the wisdom of the proposed Committee on Delinquency for consideration and action. The greatest abuse of the prevailing prison system—the lack of imagination and of understanding which keeps alive in most of our penal establishments the methods of a severe and repressive discipline—cannot be abolished by legislative decree. The greatest reform of which the system is capable—the awakening in the inmates of the new life which comes from active, responsible participation in the life of the prison community—is equally beyond the reach of legislative action. These will be the fruits of a keener intelligence and of a deeper understanding than have yet, except in a few rare instances, been brought to bear on the problem. But your Commission believes that the plan of penal administration which it has recommended, and which provides for the most thorough-going study and the most intelligent treatment of the individual delinquent which has yet been attempted, will gradually prepare the way for these and other reforms in the penal system of the Commonwealth.

Respectfully submitted,

January 1, 1919.

FLETCHER W. STITES,
Chairman,

ALFRED E. JONES,
MARTHA P. FALCONER,
LOUIS N. ROBINSON,
ALBERT H. VOTAW,

Commissioners.

GEORGE W. KIRCHWEY,
*Counsel to the
Commission.*

COMMITTEE ON DELINQUENCY ACT.¹

SECTION 1. *Be it enacted, etc.,* That the Board of Public Charities shall appoint a standing committee of five of its members to be known as the Committee on Delinquency. Such Committee shall be chosen within thirty

days after the approval of this Act, and annually thereafter, by a majority vote of all of the members of the Board, and at least one member of such Committee shall be a woman. Vacancies in the membership of the Committee shall be filled in like manner. Within thirty days after their selection, the Committee shall each year elect one of its members as chairman.

The members of the Committee shall serve without compensation but shall receive all of their travelling and other necessary expenses incurred in the performance of their official duties.

SECTION 2. The Committee selected under the provisions of this Act shall appoint a secretary, who shall not be a member of the Committee or of the Board of Public Charities. The secretary shall be the executive officer of the Committee and shall be known as the Commissioner of Delinquency. He shall be a person having expert knowledge respecting delinquency, and the care and treatment of delinquents and shall devote his entire time to the duties of his office. He shall be appointed for a term of five years and shall receive a salary of seven thousand, five hundred dollars per annum. The Committee shall have the power to remove the Commissioner at any time for inefficiency, neglect of duty, or misconduct in office, and shall, whenever a vacancy occurs either by death, resignation, or removal from office, appoint a Commissioner to fill the unexpired term.

SECTION 3. Subject to the approval of the Committee on Delinquency, the Commissioner of Delinquency shall appoint a medical director, an educational director, a director of industries, and such other directors, experts, agents, and employees for such terms and at such compensation as shall be fixed by the Committee on Delinquency. The Commissioner with the approval of the Committee shall have the power at any time to remove any director, or any expert, agent, or employee, so appointed.

SECTION 4. The Board of Commissioners of Public Grounds and Buildings shall provide the Committee on Delinquency with suitable rooms in the State Capitol, and elsewhere if necessary,

SECTION 5. The Committee on Delinquency shall have jurisdiction for the purposes of this act over all institutions within this Commonwealth of a

penal, correctional, or reformatory character now existing, or which may hereafter be established including industrial farms, workhouses, and reformatories, and reformatory institutions for minors or women, whether managed by the Commonwealth, or any political sub-division thereof or otherwise; *Provided*, That this act shall not be interpreted to deprive any warden, superintendent, or other officer, or board of inspectors, managers, or trustees, of any such institution of the right to manage its affairs, but every such institution shall make such reports to the Committee on Delinquency as the Committee shall be authorized by this Act to require and shall obey the rules and regulations established, and follow the recommendations made, by the Committee as authorized by this Act.

SECTION 6. The Committee on Delinquency shall have the power and its duty shall be:—

(a) To inspect and investigate the condition and management of all institutions within its jurisdiction, and inquire into all complaints against the same, and report thereon with recommendations of appropriate action to the Board of Public Charities, the Governor, the General Assembly, or the courts, as the circumstances may require;

(b) To institute, maintain, and supervise a medical service to accomplish the purposes enumerated in this Act;

(c) To make recommendations to institutions within its jurisdiction for the improvement of the sanitary and hygienic conditions, the medical and hospital equipment, and the medical service thereof;

(d) To transfer inmates of institutions within its jurisdiction to other institutions owned, managed, or controlled by the Commonwealth or any political sub-division thereof, or if suitable arrangements can be made, to other institutions, where such inmates may receive treatment more suitable to their mental and physical condition:....

(e) To institute, maintain, and supervise in institutions within its jurisdiction a system of correctional and reformatory education to accomplish the purposes enumerated in this Act;

(f) To institute, maintain, and supervise a system for the employment of the inmates of institutions within its jurisdiction as provided in this Act;

(g) To prepare and submit to the Board of Public Charities, not later than the first day of December of each even-numbered year, a biennial budget for the committee and such of the institutions within its jurisdiction as are wholly or partly supported by the Commonwealth. Such budget shall set forth the expenditures of the Committee and such institutions during the preceding two years, their estimated financial needs for the succeeding two years, and such other information as the Committee shall deem appropriate.

To enable it to prepare such budget, the Committee shall have the power to require of institutions within its jurisdiction, and such institutions shall prepare and submit, such reports from time to time as the Committee shall deem necessary, but to the extent that reports shall be required by the Committee for the purpose of preparing such budget; institutions within the jurisdiction of the Committee shall not be required to report to the Board of Public Charities; and,

(h) To make rules and regulations establishing a uniform system of accounting and bookkeeping in all institutions within its jurisdiction.

SECTION 7. The medical service which the Committee on Delinquency is by this Act required to institute, maintain, and supervise shall include:—

(a) The prompt and thorough examination of all the inmates of institutions within its jurisdiction with a view to the proper diagnosis, classification, and treatment of all such persons;

(b) The prescription and maintenance of standards in diagnosis and treatment in all institutions within its jurisdiction and the determination of the qualifications of those selected as physicians, psychiatrists, stewards, or nurses, in such institutions;

(c) The furnishing of instructions in personal and social hygiene to the inmates of all institutions within its jurisdiction, and of instruction in professional training to such officials, employees, or inmates of such

institutions as may be called upon to serve as assistants, nurses, or otherwise, in the medical or hospital departments thereof;

(d) The frequent inspection of the institutions within its jurisdiction with respect to their sanitary and hygienic condition, the adequacy of their medical and hospital equipment, and the competency and efficiency of their medical service; and,

(e) The installation and supervision of a proper dietary adequate to the maintenance of the health, efficiency, and morale, of the inmates in all institutions within its jurisdiction.

SECTION 8. The system of correctional and reformatory education which the Committee on Delinquency is by this Act required to institute, maintain, and supervise shall include:—

(a) The prescription and maintenance of standards of correctional and reformatory education in all institutions within its jurisdiction and the determination of the qualifications of those selected as teachers; and,

(b) The education in elementary branches of illiterate and undeveloped inmates of such institutions; the instruction of all inmates of such institutions in the principles, organization, and practice of American government; and the furnishing of a thorough industrial training to any of the inmates of such institutions for whom such training shall be deemed useful and desirable.

SECTION 9. With respect to the labor of the inmates of any institutions within its jurisdiction to which persons are committed for crime or delinquency, the Committee on Delinquency shall have the power and its duty shall be: —

(a) To require every such institution to afford to the inmates thereof, who are physically capable, an opportunity to perform useful labor in such institutions;

(b) To determine what industries shall be established in such institutions and to regulate and supervise the installation of machinery and equipment

therein;

(c) To establish rules and regulations for the employment of inmates of such institutions at road-building, quarrying, or crushing stone, agricultural work, land reclamation, or forestry, or other suitable work outside of such institution; and,

(d) To establish rules with regard to the number of hours per day during which such inmates shall be employed; Provided, That except in agricultural work such inmates shall not be employed for more than eight hours in any one day.

SECTION 10. With respect to the labor of inmates of such of the institutions within its jurisdiction as are owned or managed and controlled by the Commonwealth or any political sub-division thereof, the committee shall, in addition to the powers and duties enumerated in the preceding section of this act, have the power and its duty shall be:—

(a) To maintain a manufacturing fund for the purposes specified in this section. The original manufacturing fund of the committee shall be the manufacturing fund paid to the committee by the Prison Board Commission, as provided in this act, together with any and all sums due and owing to such Commission, and the unexpended balance of any appropriation made for the use of such commission. To such fund there shall be added from time to time such amount or amounts as shall be appropriated by the General Assembly;

All receipts from the sale of the products, manufactured or produced by the labor of the inmates of any such institution, shall be credited to the manufacturing fund and used for the purchase of machinery, equipment, raw materials, and supplies, and for the payment of wages to such inmates;

(b) To sell to the Commonwealth or to any political sub-division thereof, or any institution, owned, managed, or controlled by the Commonwealth, or any political subdivision thereof, at not more than the prevailing market price the products of the labor of such inmates; *Provided*, That institutions within the jurisdiction of the Committee owned, or managed and controlled by the Commonwealth, or any political subdivision thereof, shall have the

privilege of selling directly such of their agricultural products as they do not consume, but every such institution selling agricultural products shall account for and pay to such committee the proceeds of the sale of such products.

Any surplus of the products of the labor of such inmates which cannot be sold to the Commonwealth, etc., shall be sold in the open market, but any such product sold in the open market shall not be sold for less than the prevailing market price.

Should any institution desire to use the products of the labor of its inmates, other than agricultural products, it shall purchase the same from the Committee on Delinquency;

(c) From time to time to fix the compensation of such inmates for labor performed by them; *Provided*, That the rate of compensation to such inmates shall be based both upon the pecuniary value of the work performed and on the willingness, industry, and good conduct of the inmate performing the same;

(d) To make rules and regulations governing the payment of compensation earned by such inmates. Such rules and regulations may provide for the payment of a part of their compensation to inmates during their term of confinement to be used for such purchases as such rules and regulations shall permit. They shall also provide for the bi-monthly payment of such part of the compensation of such inmates as the committee shall determine to the dependents of such inmates, and for the payment of the unpaid balance of such compensation to such inmates at the time of their discharge, or at periodic intervals on and after their discharge; and,

(e) To establish rules and regulations for the keeping of records and accounts by all such institutions, showing the labor performed by the inmates thereof, the value of the products thereof, and the wages paid to inmates, or their dependents, or both.

SECTION 11. All wages paid to the inmates of institutions within the jurisdiction of the Committee on Delinquency owned, or managed and controlled by the Commonwealth, etc., shall be paid out of the committee's

manufacturing fund upon the order of the warden, superintendent, or other proper officer of the institution in, or in connection with, which the labor shall have been performed.

SECTION 12. The Prison Labor Commission created by the act approved the first day of June one thousand nine hundred and fifteen, ... is hereby abolished, and shall cease to exist, thirty days after the chairman of the committee on delinquency shall have notified the Prison Labor Commission in writing that the Committee on Delinquency has been duly organized as provided in this act. Within such period of thirty days the Prison Labor Commission shall transfer and set over to the Committee on Delinquency all books, papers, and records, and all moneys and evidence of debt, in its possession, and the Auditor General is hereby authorized and directed to draw a warrant on the State Treasurer for the payment to the Committee on Delinquency of the unexpended balance of any appropriation made for the use of the Prison Labor Commission.

SECTION 13. For the purpose of inspecting any institution within the jurisdiction of the Committee on Delinquency, such committee, the Commissioner of Delinquency, and any director, expert, agent, or employee, deputed by the Commissioner of Delinquency for the purpose, shall have free access to the grounds, buildings, and all books, papers, and records of such institution, and all persons, connected with any such institution, are hereby directed and required to give such information and to afford such facilities for inspection as the person making such inspection may require....

SECTION 14. ...

Should any institution within the jurisdiction of the Committee on Delinquency which is not owned, or managed and controlled by the Commonwealth, etc., fail to obey such rules and regulations, or make such report, such institution shall not be entitled to receive any financial assistance from the Commonwealth, and it shall be unlawful for the Auditor General, after having received notice in writing from the Committee on Delinquency that any such institution has failed to obey such rules or regulations, or to make such report, to issue a warrant for the payment of any money appropriated to such institution so long as such institution shall

continue to refuse to obey such rules and regulations, or to make such report.

SECTION 15. All salaries, compensation, and expenses, payable under this act, except wages for labor performed by inmates shall be paid by the State Treasurer on the warrant of the Auditor General.

SECTION 16. To carry out the purposes of this act the sum of two hundred thousand dollars, (\$200,000), or such part thereof as shall be necessary is hereby appropriated to the Committee on Delinquency.

SECTION 17. All acts and parts of acts inconsistent herewith are hereby repealed.

STATE INDUSTRIAL FARMS ACT.²

SECTION 1. *Be it enacted, etc.,* That this act shall be known and may be cited as “The State Industrial Farms Act of one thousand nine hundred and nineteen.”

SECTION 2. There are hereby established four state industrial farms for the first, second, third, and fourth districts respectively.

SECTION 3. The first district shall comprise the counties of Berks, Bucks, Chester, Dauphin, Delaware, Lancaster, Lebanon, Lehigh, Montgomery, Northampton, and York; and the state industrial farm therein located shall be known as the “Southeastern Industrial Farm.”

The second district shall comprise the counties of Bradford, Carbon, Columbia, Lackawanna, Luzerne, Lycoming, Monroe, Montour, Northumberland, Pike, Schuylkill, Snyder, Sullivan, Susquehanna, Tioga, Union, Wayne, and Wyoming; and the state industrial farm therein located shall be known as the “Northeastern Industrial Farm.”

The third district shall comprise the counties of Armstrong, Butler, Cameron, Centre, Clarion, Clearfield, Clinton, Crawford, Elk, Erie, Forest, Jefferson, Lawrence, McKean, Mercer, Potter, Venango, and Warren; and

the state industrial farm therein located shall be known as the “Northwestern Industrial Farm.”

The fourth district shall comprise the counties of Adams, Beaver, Bedford, Blair, Cambria, Cumberland, Fayette, Franklin, Fulton, Greene, Huntingdon, Indiana, Juniata, Mifflin, Perry, Somerset, Washington, and Westmoreland; and the state industrial farm therein located shall be known as the “Southwestern Industrial Farm.”

SECTION 4. Upon the approval of this act a board of managers for each district shall be appointed by the Governor. Each board shall consist of either five or seven reputable citizens, one or two of whom shall be women. The members of such boards shall serve without compensation, but all of their expenses actually and necessarily incurred shall be paid by the State Treasurer on the warrant of the Auditor General, which shall be issued upon the order of the board, countersigned by the secretary of the Committee of Delinquency of this Commonwealth. The members of the various boards shall serve for a term of five years and their successors for the same period. The Governor may remove any of the managers for misconduct, incompetency, or neglect of duty, and in case of a vacancy for any cause shall fill such vacancy by appointment for the unexpired term.

SECTION 5. The board of managers of each district is hereby authorized by a majority vote to select a suitable site for the state industrial farm of the district. Such site shall be within the district, and shall either be chosen from lands donated to the Commonwealth for the purpose or purchased by the board with moneys appropriated or donated for the purpose; *Provided*, That any such site shall not contain more than two thousand (2,000) acres. The title to land donated or purchased as herein provided shall be taken and held in the name of “The Commonwealth of Pennsylvania,” and shall be examined and approved by the Attorney General prior to the acceptance or purchase of the land. In the selection of a site the board of managers shall take into consideration the objects and purposes of the institution, the accessibility of any proposed site to the counties included in the district, and all or as many as practicable of the following enumerated advantages and resources. The land selected and purchased shall be of varied topography with natural resources and advantages for many forms of husbandry, fruit

growing, and stockraising; for brick-making, and for the preparation of all other road and paving material; and shall have good railroad drainage, sewage, and water facilities. Waste land or land requiring drainage may be selected if deemed susceptible of profitable cultivation after its improvement.

SECTION 6. All buildings constructed in pursuance of this act shall be plain and inexpensive in character and the labor in constructing such buildings, improvements and facilities shall be supplied by persons committed to the state industrial farm or confined in State or county penal, reformatory, or correctional institutions so far as found practicable.

The board of managers shall procure all necessary materials; erect and equip such buildings; employ such skilled labor as cannot be furnished by the persons committed to their respective industrial farms or by persons confined in State, or county penal, reformatory or correctional institutions and provide all proper facilities for their use and for the practical use of the institution.

When the board of managers of any State industrial farm shall have made all preliminary arrangements for the construction of the buildings and equipment therein, they shall notify the Governor who shall issue a proclamation announcing such fact, and thereafter prisoners having more than thirty days to serve shall be transferred to such State industrial farm from any jail or workhouse in that district on the order of the Governor.

SECTION 7. The boards of inspectors of the State penitentiaries, and of the Pennsylvania Industrial Reformatory at Huntingdon, upon the request of a board of managers of a State industrial farm, are hereby authorized to transfer to such State industrial farm from their respective institutions any prisoners of special or mechanical ability therein who may be found in the judgment of such board and the board of managers of such State industrial farm suitable for the purpose, and provide transportation and proper guards for such prisoners and while such prisoners remain at such State industrial farm they shall be subject to the orders of the inspectors of the institution from which they were transferred as to their return, and in all other respect, except as to discipline and government. While at such State industrial farm they shall be under the control, discipline, and government, and subject to

the orders, of the board of managers of such State industrial farm and its executive officers.

The expense of transporting and transferring prisoners used in the construction of buildings and equipment to and from any State industrial farm shall be paid by the State Treasurer upon the warrant of the Auditor General out of any moneys appropriated for the establishment of such State industrial farm. The Auditor General shall issue warrants for such purpose upon the order of the executive officers of the board of managers of such State industrial farm.

The maintenance of such prisoners as are transferred from a State penitentiary or reformatory shall be paid by the institution from which they are transferred, but the cost of such maintenance in excess of the average per capita cost of maintaining prisoners at the institution from which such prisoners shall have been transferred shall be refunded to any such institution out of any moneys appropriated for the establishment of the State industrial farm.

SECTION 8. When any State industrial farm shall have been established and ready for operation, a superintendent and matron and such other officers as may be deemed necessary shall be appointed by the proper board of managers. Any persons so appointed shall hold their offices respectively during the pleasure of the board of managers. The compensation of all such persons shall be fixed by the board of managers.

SECTION 9. When in any district the arrangements for the reception of inmates shall have been completed, the Court of quarter sessions of every county embraced in such district shall transfer from the county prisons and jails respectively to the State industrial farm of the district all persons who shall have been sentenced to any of said county prisons and jails for any crime, misdemeanor or felony, murder and voluntary manslaughter excepted, or who shall have been committed to any of such county prisons and jails for non-payment of any fine or penalty, or for non-payment of costs, or for default in complying with any order of court entered in any prosecution for desertion or non-support, and any other persons legally confined in any of said county jails or prisons except persons confined

awaiting trial or detained as witnesses; *Provided*, That any person whose term will expire within thirty days shall not be transferred.

Thereafter, when any person is convicted in any of the said courts of any offense, crime, misdemeanor, or felony, murder and voluntary manslaughter excepted, the punishment of which is or may hereafter be imprisonment in any county jail or prison, the said court shall, if sentence of imprisonment for thirty days or more be imposed upon such person, commit such person to the State industrial farm of the district in which said court may have jurisdiction. If sentence of imprisonment for more than ten but less than thirty days be imposed, the court may in its discretion commit such person to the State industrial farm for the district.

Courts of record and courts not of record of the counties included in any such district shall hereafter commit to the State industrial farm of the district all persons who might be lawfully committed to the county jail or prison on charges of vagrancy, drunkenness, or disorderly conduct, or for default or non-payment of any costs, fine, or penalty, or for default in complying with any order of court entered in any prosecution for desertion or non-support, where in any such case the commitment will be for a period of thirty days or more. If the commitment be from ten to thirty days the committing authority may in its discretion commit any such person to the State industrial farm.

The superintendent may under the direction of the court of quarter sessions remove any inmate to the county jail for the unexpired term of his or her term of commitment, or to the poorhouse of the proper city or county, or to any hospital or lunatic asylum in such county as circumstances may require.

SECTION 10. The cost of transporting any persons committed to a State industrial farm shall be paid by the county from which the prisoner is committed, and the sheriff of the county shall receive the same mileage, and fees for prisoners committed to a State industrial farm as are now allowed by law for transporting prisoners committed to the State penitentiaries. When any prisoner is discharged from a State industrial farm the superintendent thereof shall procure for him a railroad ticket to any point to which said prisoner may desire to go not farther from such State industrial farm than the point from which he was sentenced, and it shall be the duty of

the superintendent, or his duly authorized agent, to accompany the prisoner to the railroad station, deliver the ticket to the proper railroad conductor, and formally release the prisoner on the train which he takes for his destination.

SECTION 11. It shall be the purpose of every State industrial farm to employ the prisoners committed, or transferred thereto, in work on or about the buildings and farm, and in growing produce and supplies for its own use, and for the other institutions of the Commonwealth, in the preparation of road materials and in making brick, tile, paving material, and such other products or materials as may be found practicable for the use of the Commonwealth, or any political subdivision therein, and in other industries which may be approved by the board of managers of the State industrial farm and the Committee on Delinquency of this Commonwealth. Should any State industrial farm produce supplies or materials in excess of its needs and demands, or in excess of the demands of the Commonwealth, or of any political subdivision thereof, such surplus may be sold by the Committee on Delinquency at the prevailing market price.

SECTION 12. Any State industrial farm shall make such reports and keep such accounts as are now or may hereafter be required by law, and shall in all such matters be subject to the rules and regulations established by the Committee on Delinquency.

SECTION 13. The original cost of the site and buildings of any State industrial farm, and all additions thereto, and all fixed overhead charges in conducting the institution, shall be paid by the Commonwealth out of moneys appropriated for the purpose by the General Assembly.

The cost of the care and maintenance of the inmates of such institution shall be certified monthly to the counties from which inmates shall have been committed. Such cost shall be paid by the counties in proportion to the number of days spent by the inmates committed from each county. All payments shall be on requisition of the board of managers and on warrants of the county commissioners countersigned by the county controller.

SECTION 14. (Provides for transferring prisoners from one institution to another, if deemed advisable.)

SECTION 15. All the property real and personal authorized to be held by virtue of this act shall be exempt from taxation by the Commonwealth or any political subdivision thereof.

SECTION 16. The rules and regulations governing State industrial farms shall be uniform and shall be made by the Committee on Delinquency. They shall be general in character and the respective boards of managers of each institution may add local rules not inconsistent with the spirit and substance of the regulations adopted by the Committee on Delinquency.

SECTION 17. To carry out the purposes of this act the sum of two hundred thousand dollars (\$200,000), or so much thereof as shall be necessary, is hereby appropriated but not more than fifty thousand dollars (\$50,000) shall be expended for the purchase and equipment of the State industrial farm of any district.

SECTION 18. (Repeals the Act of 1917, authorizing the establishment of nine Industrial Farms.)

AGRICULTURAL PRISON LABOR.

HARRY R. CAMPBELL.

An article prepared for the County Commissioners' Convention, Pittsburgh, August 7, 1918.

Agricultural prison labor is strongly advocated by prison authorities and has been in general use in the penal institutions of Pennsylvania for many years. The movement for outdoor work for prisoners has grown rapidly, and as a result, the Pennsylvania legislature, at its 1917 session, extended the scope of agricultural work for prisoners, and authorized by an Act approved July 17, 1917, the employment of prisoners, undergoing sentence in county jails, on county or poor farms.

There is no greater curse than idleness. An unemployed prisoner is a future menace to society, and no effort should be spared to keep him busy—to

impress upon him the dignity and necessity of work, and to make him know that he is stronger physically and better morally if he is regularly employed.

Prison labor should be approached with a desire to help the prisoner and restore him to society cured of his criminal ailment. If the only purpose in the minds of the authorities is to make a profit for their district, they are in grave danger of reverting to the old convict labor system, which at best was only a modified form of slavery.

Agricultural prison labor offers the opportunity of a direct profit to the district, and places the prisoner in an environment peculiarly adapted to his own physical and mental betterment. I am informed that it is used with great success in several counties, including Delaware, Montgomery, Chester, Berks, Lehigh, Beaver, Bucks, Cambria, Fayette and Westmoreland.

Another important measure enacted by the Pennsylvania legislature and approved July 20, 1917, requires the erection of an Industrial Farm, Workhouse and Reformatory in each of nine districts created by the Act. Each institution is to be built and managed by a Board of Trustees, consisting of one County Commissioner from each county in the district, appointed by the President Judge of the proper Court.

It is the purpose of the institution to keep all persons employed about the farm and buildings, in growing all kinds of farm produce, raising live stock and in manufacturing supplies for its own use, or for the use of the several counties in the district, or any public or charitable institution owned or managed by any of the district counties.

Prisoners may also be employed in the making of brick, tile, and concrete, or other road building supplies for the use of the several counties. All material manufactured shall be sold at prices fixed by the Trustees, preference being given in the sale to the counties comprising the district, and to the cities, boroughs and townships therein.

The cost of the site, buildings and additions thereto, and all fixed overhead charges are to be paid by the counties comprising the district, in ratio to their population. All moneys received from the sale of produce or manufactured articles or supplies shall be credited to the overhead expenses.

This, in brief, is a digest of the law which is designed to inaugurate agricultural prison labor on a large scale in Pennsylvania.

The Trustees were promptly appointed by the Courts of the State. The Fourth district, organized in March with the election of Mr. George W. Deeds, of Westmoreland County, as president. This board has been actively engaged in inspecting proposed sites, a number of which have been offered, but no selection has, as yet, been made.

Another phase of prison labor that must be taken into full consideration in the establishment of industrial farms, is the attitude of the Courts in reference to the parole law now in effect. If the Judges believe that the ends of justice are best served by paroling convicts, rather than committing them to some institution, the necessary capacity of the proposed buildings would be materially affected. In most of the counties but little has been done toward a general use of the parole law, but in a few of them the Courts are evidently giving it a trial.

The parole law is regarded with especial favor in Washington County, where the Courts have at the present time, 672 prisoners under parole. Every one of this number is employed in the county and must report monthly to the parole officer, who is also the Court's employment agent, and who places every paroled prisoner in a job suitable to his ability and inclination.

This might be called another phase of prison labor, as industry is one of the conditions of the parole, and the labor is done by the paroled prisoners for their own profit and advancement—with freedom to enjoy their homes and pursue their own inclinations after working hours. So far has the system

been carried, that the Court House, once cleaned entirely by prison labor, is now necessarily cared for by a paid force of men outside the draft age. You may better understand why the Court is going to this apparent extreme, when you know that practically every industry in Washington County is engaged in war work, and that these paroled men are placed on farms, and in mines, mills and factories, where they are helping win the war, though only a small percentage of them are American citizens and very few are native born.

About 90 per cent. of these men are faithfully complying with all the conditions of their paroles, 95 per cent. are paying in monthly installments, the fine and costs imposed upon them by the Court, and less than five per cent. are proving themselves unworthy of the confidence reposed in them.

Clearfield County has 10 paroled prisoners; Clinton, 25; Indiana 40; Lycoming, 8; Lehigh, 104; Center, 6; McKean, 47; Butler, 35; and Somerset, 64. It is doubtful if the entire number in all the other counties in the State would equal the number paroled in Washington County.

Montgomery County has taken a unique step in the employment of prison labor and uses the 80 inmates of its county jail in knitting socks, on knitting machines, for the Red Cross. Many other counties employ their prisoners, in their jails, in useful occupations.

Agricultural prison labor has been tried out in many States with gratifying success. Down in Alabama there are 325 men at work on State farms, where they raised 2300 bushels of wheat last year, which is an excellent record for a section where wheat is not supposed to grow. Convicts down there are also worked in the Alabama coal mines, and are producing 4500 tons of coal daily. Their farm prison labor is not satisfactory, but in the mines it is pronounced superior to free labor.

Nebraska is using agricultural prison labor in a small way outside State institutions and is meeting with splendid success. Maryland is having the same experience with about 75 convicts who are helping to relieve the farm labor shortage. Georgia's male convicts are employed on the public roads, and the women prisoners are now engaged in light farm work.

Michigan is farming 4000 acres, but still found sufficient prison labor to help the farmers with their harvest last year. Wisconsin has about 100 prison labor farmers and is of the opinion that their work is as productive as free labor.

New Hampshire objects to agricultural prison labor because it gives the prisoners no winter employment, and continuous work is regarded as desirable. Mississippi is meeting with good success on her State controlled farms, but the law does not permit the use of prison labor except at State institutions.

Massachusetts is utilizing prison labor on farms, to relieve the scarcity of farm labor caused by the war, successfully employing about 100 for that purpose. They regard convict labor, properly directed, as efficient as free labor.

Vermont believes that its present experience justifies a more extended use of agricultural prison labor.

Kansas uses its prison labor mostly in prison coal mines, but is diverting some of its convicts to help the farmers during the war. Six hundred convicts are employed in Florida on State owned farms. They are meeting with great success and their prison labor is in considerable demand. Tennessee has a number of convicts employed in agricultural labor. The men have gained in health and earned a profit for the State.

Connecticut uses her prison labor on roads and farms. They think it is better and more efficient than available free farm labor, and the farmers of the State are well satisfied with the results obtained.

Minnesota uses prison labor on roads, and is conducting State agricultural farms with success. Nevada uses prison labor to harvest crops on shares. They report the cost disappointing and think their best results are obtained with agricultural prison labor on State farms. Virginia uses its prison labor for grinding agricultural lime for fertilizer. The State employs about 250 convicts on its own farm, in agricultural work, and finds the work beneficial to the prisoner as well as to the State.

Illinois is making a special effort to utilize its prison labor, not only to relieve the scarcity of farm workers, but to help in all other war industries. About 100 men have been paroled especially for farm labor, and 350 are successfully employed in factories where equipment for the government is being manufactured.

The great war has brought forth one outstanding fact in criminology—no matter what his instincts may be in times of peace, the convict is a patriot, according to his lights, in time of war, and in all my investigations, covering practically every eastern, southern and middle western State, I have not learned of a single prisoner who violated a parole given him to engage in work that would help win the war.

Iowa is operating nearly 3000 acres by agricultural prison labor, and is making a wonderful success, not only from a financial viewpoint but also in fitting the convicts to regain their place in society.

Indiana has done wonders with prison labor along agricultural lines, having established one large Industrial Farm for misdemeanants. In addition, the State is utilizing its prisoners to a considerable extent to relieve the scarcity of farm labor caused by the war. About 100 convicts built sidings to coal mines to get out fuel for the war. At the time of a disastrous flood they worked day and night, without guards, saving by their efforts thousands of dollars worth of private property. They were also successfully used at the time of a severe tornado, recovering the lost, and clearing away the debris. Indiana does not favor the use of prison labor on public roads.

North Carolina is working 500 prisoners on State owned farms with excellent success, and in addition is helping out the farmers to some extent. The State also employs about 100 men on the highways, but believes road work by prison labor is good for the roads but bad for the men.

New York thinks that every available prisoner should be employed, but because of constitutional limitation cannot use its convicts on private farms. Practically every penitentiary and county jail in the State is employing its prisoners either at gardening or farm work on State or county owned or leased farms. Food production has been materially increased by these concerted efforts towards agricultural products, and the prisoners

themselves are benefited by the outdoor work. Prison labor is also extensively used on the public roads.

A notable example of the successful employment of agricultural prison labor, that is coming into more than local prominence, is in our own State of Pennsylvania, where Warden Francies is working wonders with his advanced methods at the new penitentiary at Bellefonte.

WASHINGTON, PA., August 7, 1918.

THE FINANCIAL ARGUMENT FOR A COUNTY PRISON FARM.

It will be generally granted that useful employment in the open air will be beneficial, but let us also consider the financial side of the proposition. It will be remembered that the General Assembly of 1917 passed a bill providing for the establishment of nine Industrial Farms, to which convicts usually sent to the county jails may be sent for discipline and employment. I am indebted to Mr. Harry J. Campbell, of Washington, Pa., for some statistics from nine counties in the southwestern part of the Commonwealth, constituting one of the Districts in which an Industrial Prison was to be located. In order to determine whether such a Prison Farm would be remunerative, Mr. Campbell collected the statistics from these nine counties which afford fairly conclusive proof of the economy of the proposition.

These nine counties in 1917 sent:—

179	prisoners	to	the	Allegheny Co. Workhouse	at	a	cost	of	\$20,869
532	"	"	"	Western Penitentiary	"	"	"	"	102,401
313	"	"	"	Morganza (Boys & Girls)	"	"	"	"	60,267
122	"	"	"	Huntingdon Reformatory	"	"	"	"	13,742
409	"	"	"	County Prison	"	"	"	"	81,381
1555	"	"	"	various prisons at a total cost of					\$278,660

If a Prison Farm were established, they would send none to the Allegheny County Workhouse.

It is estimated they would send to this farm one-fourth of those sent to the Penitentiary.

They would send to the Farm one-tenth of those sent to Morganza.

Likewise, one-third of the number sent to the Reformatory (some have estimated the number to be one-half).

The number of prisoners held for trial at the County Jail varies from one-tenth to one-half of the whole number imprisoned. However, we will estimate those convicted at one-half of the number. Hence, to this Penal Agricultural Institution a minimum number of 587 may be sent, according to the last available statistics.

The funds available for such Institution may be computed as follows:—

Money heretofore paid to the Allegheny County Workhouse	\$20,869
One-fourth the cost of prisoners at the Western Penitentiary	25,600
One-tenth the cost of prisoners at Morganza	6,026
One-third the cost of prisoners at Huntingdon Reformatory	4,580
At the County prisons there are certain overhead expenses which must be taken into account. Estimating that one-half the number in the County Jails would be removed to the District Farm, and that the cost of maintenance amounts to 50c daily for each prisoner, the saving would amount to	30,782
Total estimated sum available for the District Farm in one year from nine counties	\$87,857
Let us be entirely fair in our estimate. The 587 prisoners are expected to earn a large part of their maintenance; but should we estimate the net cost of maintenance at 25c daily per prisoner, the cost amounts to	53,563
Balance	\$34,294

This balance would go far toward meeting the expense of purchasing and stocking the farm and providing the temporary buildings which may be constructed by the prisoners themselves. The saving to these counties in two or three years would suffice to purchase and equip the plant, and with efficient management, the Penal Farm ought soon to be self-supporting—a result not only satisfactory to taxpayers but, what is far more important, in the highest degree beneficial to the delinquent in whose restoration the community is vitally interested.

These facts have been gleaned from a study of nine counties, but it must be remembered that the bill now before the General Assembly provides for the establishment of such an Institution by almost double the number of counties, hence it is apparent that within two or three years the entire expense of the farm and its equipment will be returned to the managers and with self-support practically assured, the future expense of caring for such delinquents will be reduced to a minimum or will entirely vanish.

A. V. H.

STATE BOARD OF PUBLIC CHARITIES AND PRISON LABOR.

We gladly present the following facts which have been gleaned from interviews with Edward Wilson, Esq., one of the agents of this Board.

So far as prison labor is involved, the Board of Public Charities has been deeply interested in developing the possibilities of an Act which on their initiative was passed and approved in 1917. This allows the employment of prisoners on lands belonging to any county.

In 1915 Judge Isaac Johnson, in Delaware County began a system of employing prisoners which the Board desires to extend. In the year 1918, the receipts from the crops produced by the labor of prisoners amounted to \$14,000, in addition to a large amount of vegetable products consumed at the prison. The net profit is near \$7000. Report comes that Berks County will be able to supply the prison with vegetables for the winter.

Northampton County employed fifteen to twenty prisoners on a small farm recently purchased. Dauphin County had a few prisoners at work on the almshouse farm. In Montgomery County from fifteen to twenty prisoners have been employed on the Poor farm. In Columbia County seven Italians are engaged in operating a war garden which it is said has been very profitable. In one or two counties with large population, there is no land available for such purpose. Mr. Wilson states that little or nothing has been accomplished in this direction in those counties whose jail population is small. At one time in the year 1918, there were 13 counties without a prisoner. In some counties prisoners have worked on the roads. A few counties have been willing for selected prisoners to be paroled to farmers.

Mr. Wilson is inclined to the belief that in some of our counties, the prevailing type of prisoner is too vicious to be allowed the freedom which belongs to the cultivation of the soil. From observations elsewhere we are inclined to the belief that the vilest man or woman, unless defective in mentality, will respond when treated with kindness and made to feel that he or she is trusted. Granted, however, that it may be considered unwise to send all prisoners without reservation to work on the farm, under the system proposed by the Commission to investigate Prison Systems, and whose Report to the General Assembly is found elsewhere in this number of the Journal, all the State Industrial Prison Farms are to foster some industry or industries aside from the horticultural and agricultural employments. On these farms there will be found opportunity for the employment of all prisoners, whatever may be their character or temperament.

Last year in a casual inspection of the prison at Wilkes-Barre, the secretary announced that he considered 46 out of the 75 prisoners would be available for an Industrial Farm. Mr. Wilson after a very careful study of the situation concluded that 11 could be sent to work on the outside. Now something depends on the viewpoint. If the State should own an Industrial Farm fully equipped for the permanent accommodation of prisoners with diverse industries, Mr. Wilson probably would add materially to the number which might be sentenced to the penal farm instead of to the county prison affording so little opportunity for continuous profitable labor. The secretary consents to some reduction of his estimates, if real employment with some remuneration can be supplied at the county jail. The tendency of this

practical age is to give regular employment to all those whom we for a time exclude from community freedom, and to place over them officials who will direct these industries.

HOME OF INDUSTRY.

This Institution which we allowed some 30 years ago to pass beyond our control, perhaps to its advantage, has just issued a Report of its work for the year 1918. There was some honest difference of opinion in 1890 as to the value of this enterprise, but we believe the principal reason for the abandonment of the project by The Pennsylvania Prison Society was the lion in the way in the shape of a financial bugaboo.

During the last year this institution cared for 275 men, keeping them on an average of 32 days for each man. Their industries have contributed \$9,422 toward its own support.

We have always thought that the institution should be removed to a farm. In 1917 some of the men did work on land which they secured and the results were very favorable. In 1918 they entered upon the same work with high expectations, but from a variety of causes the agricultural operations have not been prosperous. Labor went elsewhere. We hope for better results next year.

We recommend this Home as worthy of continued support.

MILITARY DISCIPLINE AND PUNISHMENTS.

The Committee on Public Information acting under the authority of the United States Government have from time to time published and issued pamphlets giving some extremely valuable facts and explanations with regard to the Great War and dealing with its causes and results. Not the least valuable among these circulars is No. 113, issued March, 1918, and devoted to "German Militarism and its German Critics." This handbook contains forty pages and is compiled from sources which the Government regards as

sufficiently reliable to justify extensive circulation. It may be obtained by any one who will send request, and refer to it by title, from the Committee on Public Information, Washington, D. C.

From this document we quote a few instances of brutality which have been presented by credible witnesses:—

1. “A Polish recruit was maltreated so fearfully by an officer that he finally hanged himself. The officer induced the soldiers to certify that they had seen nothing.
2. “An officer struck a sick recruit repeatedly on the chest so that he screamed with pain and soon thereafter died in a hospital.
4. “Soldiers were struck in the face during instruction. ... Witness saw hundreds of times helmets pressed down and the bands which held them under the chin pulled so that the soldiers grew red in the face. Alsatians and Lorrainers particularly were maltreated and frequently called ‘French Skulls’ and worse. The officers warned the men against complaining, promising worse treatment if they dared to report these outrages.
5. “During the maneuvers no day passed without brutality.... Boxing of ears, blows, even with the sword and riding-whip, were daily occurrences.... Complaints were omitted for fear of the consequences.”

Enough. In the circular it is stated that at a certain military trial in Germany, held in 1914, 922 men from all parts of Germany had signified their willingness to give testimony and were ready to report some 30,000 separate instances of brutal treatment of soldiers.

Hence it seems apparent that the spirit of dominant militarism is arrogant, ferocious, brutal. It harks back to the time of medieval tortures. By the circulation of Tract No. 113, the Government of the United States has indicated its abhorrence and utter condemnation of such cruel and inhuman methods of enforcing discipline. Naturally we expected that our army officials would not for a moment countenance such arbitrary and tyrannical treatment of offenders.

When we take into consideration the inexperience of this nation with large armies, there is cause for congratulation that the instances of cruelty and unwarranted severity have been proportionately so few. And yet there have been some instances of pitiless malevolence inflicted upon a class of offenders who least deserve it. We are aware of the penalties for disobedience to orders which naturally belong to a military system. In accordance with the military code, disobedience is a heinous crime. So when the officials were confronted with refusal to obey orders, even though the offenders were of the highest character, the mind of the militarist could view the offense from only one angle. We are referring to the treatment accorded to some—not all—of the “conscientious objectors.” They constituted an exceedingly small proportion of the American Army which at the time the armistice was signed numbered 3,665,000. The number altogether of those conscripted whose religious convictions forbade them to use carnal weapons was about 3,900—less than one-ninth of one per cent. of the vast American Army.³ Of these 1,300 accepted non-combatant service and 1,500 were allowed to be employed on farms or to aid France and Belgium in the work of reconstruction of their ruined homes and devastated lands. Our latest advices inform that 527 of these “conscientious objectors” have been court-martialed and sent to the Military Prison at Fort Leavenworth. A majority of these belong to religious bodies whose creeds are opposed to war. These men were not hunting for trouble. Conscription brought them from their peaceful homes and from their farms where they were so much needed to aid in increasing the food supply of the nation. They were living inoffensively and were brought into difficulties by no overt act. It is not our intention to uphold or combat their interpretation of “The Sermon on the Mount.” They were men who were regarded as useful, upright members of the communities where they resided. Some of them belonged to bodies whose members have been foremost in every philanthropic effort for the last two centuries. We may attach no special virtue to works of superogation, yet we venture to suggest that men and women who in times of peace have been foremost in honest industrial pursuits, who have been prominent in all movements to advance the best interests of the community, who have devoted their time and their means lavishly to social betterment, should in time of war be entitled to some consideration on account of their past services in the uplift of humanity. Between the ages of 21 and 31, less than one to every 36,000 were found

who claimed immunity from military service on account of their creed, and as many of these accepted some form of non-combatant service, the number absolutely refusing to comply with any military command was less than one out of 60,000 conscripts. Would it not have been wiser to allow these men to continue their lawful avocations on the farm, in the shop, in the mills, than to support them in idleness, to detail a special force to guard them, and to ruin their health by harsh treatment?

The Hofers case is an authentic instance of an infliction of tortures by methods which acknowledge no obligation outside of military authority. Jacob Wipf and the three Hofer brothers were members of the Hutterian sect, a small body residing in California, "They believed, with an intense conviction, that their duty to their God utterly precluded any submission to military command.... It must be remembered that this was no degenerate whim, nor yet the stubbornness of criminals—it was the highest spiritual conviction of deeply religious men." They refused to wear the uniform. A mere outline of the penalties will suffice. Thrown into the "Hole," 30 feet below the base of the building at the level of the sea. Murky atmosphere. Stripped to underwear. Handcuffed to an iron bar so that their feet barely reached the floor. Remained strung up for 36 hours. No food; one glass of water. Repeatedly beaten with clubs. Then for five days exempted from "hanging up," but confined without food, or sufficient clothing. The authorities were finally broken, not these God-fearing men. It seems like a tale from the "Book of Martyrs," not an event in a civilized nation. They were released from the dungeon broken in health, afflicted with scurvy, and after suffering a lot of petty persecutions, were transferred to another prison in a colder climate. Here they were placed in "Solitary," with diet of bread and water, strung up for nine hours a day, forced to sleep on the floor. The cold draughts had a natural effect. When it was learned that they were ill, they were removed to a hospital where two of them died in a few days from pneumonia. The surviving brother, though scarcely able to walk, was mercifully released to accompany the dead bodies of the two brothers to their homes. Military vengeance was satiated. It is incredible to believe that such methods in this enlightened age are used.

From the New York World, we note the following instances of treatment accorded to "objectors" at Camp Funston. Sleeping on bare floor. No food

all day. Kicked repeatedly. Beaten with rifle butts, pricked with bayonets, dragged over filth, choked till they are breathless, placed under a cold shower at midnight, clothes and all, hung temporarily by the neck, some rendered insane for the time. It is hard to realize that such things could happen in America. Do we not speak of civilized warfare? Does war necessarily make fiends of men prematurely? It is a pleasure to report that the officers at Camp Funston responsible for these outrages were either dismissed or removed to a different field.

The larger proportion of those imprisoned at Fort Leavenworth belong to the peace-loving, inoffensive, industrious Mennonites. Take the case of the Amish Mennonites. Last summer 45 of these quiet people were sentenced to life imprisonment for refusing to obey the orders of their inferiors in many points of view except that of military rank. This sentence was commuted to an imprisonment of 25 years. Twenty-seven of the same sect were sentenced from 10 to 20 years each for a similar offence. Virtually in every one of these 72 cases, the crimes consisted in a refusal to don uniforms. Most of them have longer sentences than are usually dispensed for manslaughter.

The length of these sentences and also of many other sentences pronounced upon others who have broken the regulations of the military code has been made the special object of investigation by Congress. The excuse that some of these excessively long sentences were military bluff for the deterrent effect and were never intended to be carried out in full is irrational. If such statement is correct, our system of military court procedure ought to be overhauled and renovated. We are not contending that offenders should go unpunished, we are merely insisting that the penalties prescribed shall be commensurate with the offense, and shall be consistent with modern jurisprudence.

Let us be thankful that the instances of cruelty and preposterous punishments have been so few. Grant that some of the reported instances are a species of brutal hazing, that some few bone-headed young officials "drest in some brief authority," with an overweening sense of their importance, have taken a narrow view of military discipline, still there have

been sufficient complaints to elicit the following editorial in the sober Public Ledger of Philadelphia.

TORTURE FOR MILITARY PRISONERS?

“If any branch of the Government’s military activities calls for an instant and searching investigation, it is certainly the treatment accorded the “conscientious objectors” in the military prisons to which they have been sent by court-martial. Even if half the allegations contained in the complaints concerning the prisoners of this type, at Governor’s Island, New York, and at Fort Leavenworth, are true, the conditions demand instant correction and those responsible therefor summary punishment.

“In times of war severity of treatment, within the limits of humanity, is to be expected by those who refuse to fulfill their obligations to the nation; but the term ‘severity of treatment’ is an euphemism when used to describe the experiences of conscientious objectors, shackled, unclothed, for hours to cell doors, kept for days in dark cells, and forced for weeks to subsist under physical conditions which the law would not permit in the case of animals. If these charges are substantiated, and the outraged sense of justice of the nation demands that they be either substantiated or disproved, then the drastic revision of military law and practice is an imperative duty of Congress which it dare not ignore or neglect.

“There is abundant reason to believe, in the severity of the sentences permitted to be imposed by army courts-martial, that there is lacking in the military mind that sense of fitness and of humanity which is in accordance with the age in which we live. The United States cannot with clean hands ask the nations with which it is allied in the war to humanize the laws of war while it tolerates inhumanity in the enforcement of its own military regulations at home. Recalcitrant soldiers offer a difficult problem, of course; but the fact is a greater reason for dealing with such offenders with tact and, above all, with

humanity. Torture has no place in the penology of the day, and least of all in the service which prides itself on its patriotism.”

The Acting Committee of The Pennsylvania Society, having been informed of some instances of punishment which seemed to resemble soulless European autocratic methods, sent the following remonstrance to Secretary Baker:—

“The Pennsylvania Prison Society learns with astonishment and a profound sense of sorrow of the brutal methods of punishment employed in some of our Federal Prisons upon military offenders—especially upon so-called “Conscientious Objectors” whose only offense is a consistent adherence to their sense of duty. The studied attempt to break the spirit of prisoners at Fort Leavenworth and elsewhere by unspeakable cruelty suggests the practices of a barbaric past rather than those of a civilized and enlightened people. Granting that a Nation must at times deal firmly with political offenders, can any crime ever justify the employment of cruel and inhumane treatment? If such barbarous punishment has the sanction of law, then an outraged sense of justice demands the immediate revision of our Military Code.”

The following note was received, which indicates that the War Department at Washington has taken measures to relieve the harsh conditions.

“FEBRUARY 6, 1919.

“... The War Department immediately upon having conditions at the Disciplinary Barracks called to its attention, instituted an investigation. The report of that investigation disclosed the fact that the trouble at Leavenworth was due, not at all to the administration of the prison, but to the regulations which were ill-adapted to the unusual type of prisoner that the Selective Service Act brought to military prisons. The Secretary at once made some appropriate modifications of those regulations and has called a conference to consider further changes in disciplinary regulations, not only to meet this unusual condition but to bring the Army’s disciplinary methods up to the most modern penological standards, in case they shall be found to be deficient. The

conference will also consider ways of meeting the immediate emergency of the overcrowding of disciplinary barracks due to the increased size of the Army during the war. The conference will come to its conclusions in the near future and you may be assured that action leading out of its conclusions will be promptly taken.”

“Very truly,
“F. P. KEPPEL,
“*Third Assistant Secretary.*”

Confidential orders, recently made known, of the War Department, issued in October, 1918, prescribed that those conscripts, refusing on account of conscientious scruples to perform military service, should not be treated as traitors or as guilty of rank insubordination. The Government thus in some form recognized the validity of their scruples. As a rule such persons were entirely segregated from the other men. For a time solitary confinement was discontinued, but we regret to report that at the military prison at Leavenworth some 25 of these objectors have recently been remanded to cellular isolation. One of these men has for some time been engaged in Christian work under the auspices of the Y. M. C. A. Very recently he received a visit from a gentleman in whose office he had often been a visitor, but his mind seemed a blank, as he did not appear to recognize his visitor who called to offer services. This mode of punishment was having its logical effect.

We fully endorse the attitude of the U. S. Government as indicated in its Official Bulletin, No. 113, page 5:—“Accustomed as these leaders have been for many years to universal military service, to a large standing army, ... to marked class distinctions, they have absorbed, and are now wedded to, certain notions which to us, who have grown up under very different conditions, seem like worship of constituted authority and the unwarranted surrender of individual responsibility. The gradual development of these very notions has brought about an inordinate influence of the military group in public affairs.”

We rejoice that our Government so clearly sets forth the evils of a military authority, the spirit of which is so manifestly opposed to the genius of our free institutions.

On behalf of the Editorial Committee,

J. F. OHL,
FLORENCE BAYARD KANE,
ALBERT H. VOTAW.

PRISON EXPERIENCES.

Within the last few years the general public has been informed of the real life of the convict by intelligent observers who have suffered a few days of incarceration in order to gain an insight into the actual effects of imprisonment. The accounts were interesting and instructive, but we now have another opportunity to acquire knowledge of prison conditions from some intelligent and conscientious persons who have been imprisoned without resorting to a fake process in order to have such experience. We refer to a class of offenders who from religious scruples and in some cases for other reasons have disobeyed the military requirements. We hold no brief for these offenders, but the observations of some of these persons are a decided contribution to the science of penology. Making due allowance for hasty conclusions arrived at from a brief period of incarceration, and also after insufficient opportunity to grasp the subject in its entirety, nevertheless, the facts related, and the arguments and deductions derived from their experiences should appeal to all who have interest in the reformation of criminals.

Rev. Evan Thomas, a young man of deep religious conviction, and of a keen sense of injustice, has recently published in *The Survey* some details of prison life in the Federal Prison at Leavenworth, Kansas.

We quote some portions of his article.

“The burden of prison life as I experienced it, however, was not the physical hardships but the unspeakable moral filth and vice to which one is constantly exposed. I could not have believed many of the things I heard and witnessed at Fort Leavenworth had they been reported to me before going there. No sexual vice or moral depravity is too low for some of the

men confined there. The Disciplinary Barracks have been called the ‘cess pool for the dregs of the army.’ But many a fine young soldier whose only offense was to overstay his leave or be the helpless victim of the antiquated military law in this country, has found his way among the ‘dregs’ of the army; and as for the others, the great majority are the products of our reform schools, orphan asylums and jails. These men are indiscriminately grouped together in the prison. It is true that there are two so-called honor wings for prisoners in the Disciplinary Barracks, but I was never able to discover just what was necessary to be assigned to these wings. The information generally given me by other prisoners was that it was necessary to do ‘some hand-shaking’ first. As a matter of fact, as nearly as I was able to learn, the power lay very largely in the hands of a group of prisoners, who through clever politics and the holding of certain important jobs in the executive office and elsewhere, were able to control things to a large extent. I was told that even in these honor wings moral conditions were bad, but in the other wings where men were indiscriminately allotted, it often happened that diseased men were assigned to the same cells with others who had to share the same toilet facilities. The sixth wing, composed of eight tiers of open cells, each of which contains three double-decked cots and six occupants, is known as the ‘mad-house’ by the prisoners. Any thoughtful reading, writing or study in this wing is next to impossible. Before going into solitary confinement as a protect against the severe treatment accorded to such conscientious objectors as refused to work, I spent one day in this wing and the thought of ‘solitary’ lost much of its dread for me.

“It is certainly possible for the man of wide interests or strong character to live in such surroundings without any great degree of moral harm to himself, but for the young, the weak, the very immature, such conditions are nothing short of ruinous. The conversation is confined largely to sex, ‘booze’ and the personal daring of the prisoners. No crime is too terrible and no feat too desperate for most of these men in their talk. The menace of this sort of thing to those whose interests are almost entirely within the prison walls is the most insidious and destructive thing imaginable. Yet no real effort is made by the authorities to group the prisoners so that at least some of the men could be spared a great deal of temptation. Much more serious is the fact that the prison life itself is not calculated to give a man any interests but those of the basest sort. Self-government is practically

unknown at Fort Leavenworth except in the honor wings, where I believe the occupants are allowed to elect their own orderlies.

“At the Disciplinary Barracks there is a department of psychiatry which takes a very careful record of every prisoner’s history and this record is faithfully verified by the authorities through letters and other means of information. But once this record is completed and on the files, apparently everything has been done that is required. So far as I was able to observe, at least, no really constructive efforts were made to relieve the conditions in the wings which I have spoken of, where a man of refined sensibilities is often quartered in the same double-decked bunk with a degenerate or a moral pervert.

“THE FAILURE OF PUNISHMENT.

“The condition of affairs which I have been attempting to describe is greatly aggravated by the fact that the idea of punishment and discipline reigns supreme in the prison. Much is said in the rules and regulations about the aim of the institution being to improve every prisoner and turn each man out a better and more useful individual than when he came in. That is one of the standing jokes of the prisoners and not without reason, for one has only to read the book of rules itself to see that the military tradition of punishment and discipline is the medicine which is expected to work this great transformation. But unfortunately most of the occupants of a military prison are there because of their failure or refusal to accept this military tradition. They are there because they are weak, mentally and morally, or too independent for the army or because they object to it on principle.

“So far as I have had experience in life I have yet to observe anything more absolutely negative in its purpose and effects than this method of discipline. The prisoner who has the distinction of having been longest at Fort Leavenworth, had only two more days of his sentence to complete when a guard called him a vile name, and utterly regardless of the inevitable consequences this prisoner knocked the guard down with a brick. He has since received several extensions of sentence because of other defiant acts. The ball and chain, solitary confinement and all the other repressive

measures of the prison system have some way not succeeded as yet in turning this man out of prison a 'better man than when he came in.' There unquestionably is a criminal element in prison that is a menace to society, but depraved or vicious as some of these men may be, there is yet some good in every one of them and possibilities of truly chivalrous conduct in all of them when properly treated. But the ball and chain, the iron rule, the cursing and foul threats by guards do not seem to bring out the good side of these men.

"Not long before I was released two men were caught fighting in the corridor of the wing near my cell. These two men were not equally guilty. To go into the details of the case would require more space than I have, but the point I wish to bring out is that they both were at once taken to the executive officer of the prison and in ten minutes were back, sentenced alike, to ten days in the 'hole' on bread and water. The great object of such prison punishment is to break a man, make him humble, meek and obedient. When this is done the process of making a man of the prisoner seems to be considered completed. A guard once told me while I was in solitary that when he chained a man up backwards as punishment for talking in solitary, as used to be done, he was generally kind-hearted enough to let the man down if he repented and asked for it in the 'right spirit,' but if the man was too 'damned proud to show how much it hurt him he would let him take his medicine.' I mention this because to my mind it is typical of the punishment and discipline idea of the prison. Actually what happens in this process of breaking is that the prisoner in the great majority of cases is shoved still further down the scale of degradation and lack of self-respect. He becomes either flabby or vicious. This is especially true of such criminal types as need the helpful, sympathetic and human advice and correction of trained men above everything else.

"It is my belief that at the bottom of all that I have been trying to tell, lies not the dishonesty or cruelty of individual officials but a state of mind shared largely by us all, even prisoners themselves oftentimes, viz., the idea that the convict is something apart, something taboo, a person who has forfeited all the rights of normal human beings, and with this idea goes that of punishment, the ingrained belief that the only way to deal with viciousness or wrong-doing is to keep the big stick constantly at hand. This

certainly is the theory of our prisons if one is to judge from the products of our reform schools and jails whom I met at Fort Leavenworth. These men very largely had grown up with no other idea of life than that of the big stick. Put one of these prisoners in authority over others and in the majority of cases he can be more dictatorial and cruel than any guard. The supposition is that to make this outcast—the prisoner—bow to authority will make a man of him.

“Prison reform is no easy matter. It must be the work of devoted and expertly trained men and women. Sentimentalism can play no part in it and certainly discipline, properly understood, will always have its place, but it will be discipline in which mutual responsibility, human sympathy and understanding will replace autocracy and indifference to the individual and personal element at stake. It is, perhaps, only fair to say that with the arrival of Major Adler at Fort Leavenworth at the beginning of this year certain very important reforms have been started. But it is going to be a long, uphill fight which will require the enlightened support of the public if prisons are ever to cease being a degrading influence in the prisoner’s life to say nothing of becoming the constructive help that they should be and can be.”

PROHIBITION AND ARRESTS.

HARRY M. CHALFANT.

... We have a detailed report of the number of arrests in Detroit during the last eight months of license as compared with the first eight months under prohibition. Detroit became dry May 1, 1918, and this report covers the two periods of eight months each, preceding and following that date. It is issued by George H. Walters, deputy police commissioner. Detroit is the largest city in the world to experiment with prohibition, it having close to 1,000,000 people.

We have grouped kindred offenses to secure brevity. The first column shows the number of arrests during the wet period and the second column shows arrests for the same offenses during the dry regime. In the third column we have worked out the percentage of reduction. Under the dry period there were 1511 arrests for violation of the prohibition law and 550

convictions resulted. These are omitted from the list because, obviously, no comparison on this offense could be made. The following figures tell their own story:

NUMBER OF ARRESTS.

Under license.	Under prohibition.	Percentage reduction.
28,156	10,543	64

It is worthy of note that these results are not materially different from what happened in the cities of Denver and Seattle, which became dry January 1, 1916. They afford a hint of what may be possible, at least to a degree, in Philadelphia after the 1st of next July.

PHILADELPHIA, February 20, 1919.

HONORARY MEMBERS.

Maud Ballington Booth (1909)	New York City.
Judge Ben B. Lindsey (1909)	Denver, Colo.
4 Frederick Howard Wines (1909)	
Judge McKenzie Cleland (1909)	Chicago, Ill.
4 Gen. R. Brinkerhoff	
Z. R. Brockway (1909)	Elmira, N. Y.
4 Prof. Charles Richmond Henderson (1910)	
Dr. Hastings H. Hart (1914)	New York City.
4 James A. Leonard (1914)	
Timothy Nicholson (1915)	Richmond, Ind.
Amos W. Butler (1915)	Indianapolis, Ind.

LIFE MEMBERS.

4 Ashmead, Henry B.,	4 Lewis, Howard W.,
4 Bailey, Joel J.,	Lewis, Mrs. Sarah A.,
4 Baily, Joshua L.,	Longstreth, W. W.,
4 Bartol, B. H.,	4 Love, Alfred H.,
4 Benson, E. N.,	4 Lytle, John J.,
4 Bergdoll, Louis,	4 Maginnis, Edw. I.,
4 Betts, Richard K.,	4 Manderson, James,
Bonham, Eleanor M.,	4 Milne, Caleb J.,
4 Bonsall, E. H.,	4 McAllister, Jas. W.,
4 Brooke, F. M.,	4 Nicholson, Robert P.,
4 Brown, Alexander,	4 Osborne, Hon. F. W.,
4 Brown, T. Wistar,	Patterson, Robert,
Brush, C. H.,	4 Pennock, George,
Buckley, Daniel,	4 Perot, Joseph,
Carter, John E.,	Perot, T. Morris, Jr.,
4 Cattell, Henry S.,	Pooley, Fred. J.,
4 Childs, George W.,	4 Potter, Thomas,
Cochran, Miss Mary N., Jr.,	4 Powers, Thomas H.,
Coles, Miss Mary,	4 Price, Thomas W.,
4 Collins, Alfred M.,	Randolph, Miss Anna,
Coxe, Eckley B., Jr.,	Rhoads, Joseph R.,
4 Downing, Richard H.,	4 Roach, Joseph H.,
4 Dreer, Edw. G.,	4 Saul, Rev. James,
Dreer, Ferd. J., Jr.,	4 Santee, Charles,
4 Douredore, B. L.,	4 Seybert, Henry,
4 Duhring, D. D., Rev. H. L.,	4 Sharpless, Townsend,
Duncan, John A.,	4 Steedman, Rosa,
4 Elkinton, Joseph S.,	Stephens, Emily J. I., M. D.,
Elwyn, Alfred,	4 Stokes, Wm. C.,
4 Elwyn, Mrs. Helen M.,	4 Sulzberger, David,

- | | |
|---|--|
| 4 Fotterall, Stephen G.,
Frazer, Dr. John,
Frazier, W. W., | 4 Thomas, Geo. C.,
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